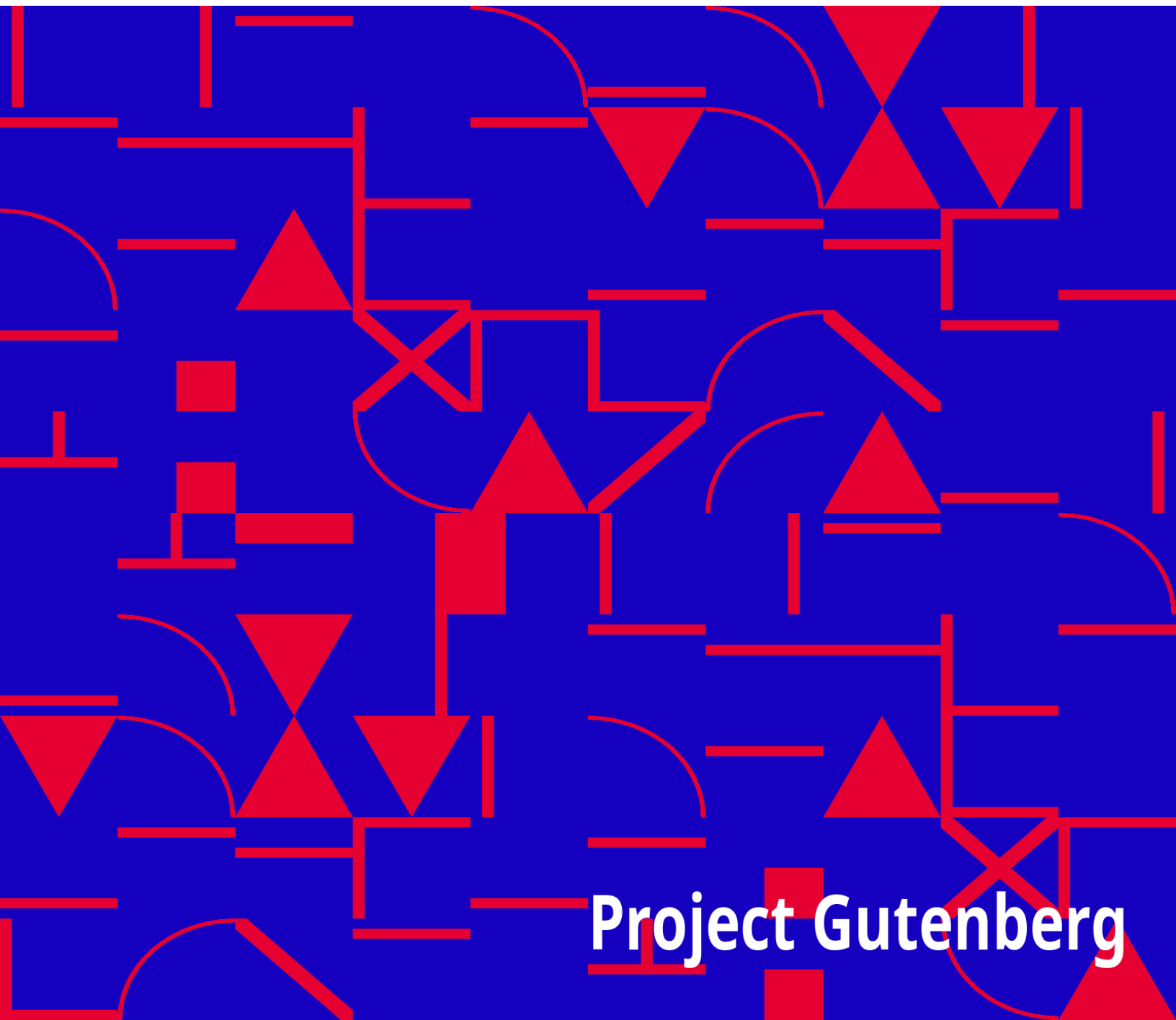


# The Irish Ecclesiastical Record, Volume 1, January 1865



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ECCLESIASTICAL RECORD, VOLUME 1, JANUARY 1865 \*\*\*

# THE IRISH ECCLESIASTICAL RECORD.

JANUARY, 1865.

THE SEE OF CLONMACNOISE IN THE SIXTEENTH CENTURY.  
CARDINAL CONSALVI AND NAPOLEON BONAPARTE.  
ST. BRIGID'S ORPHANAGE.  
THE MSS. REMAINS OF PROFESSOR O'CURRY IN THE CATHOLIC  
UNIVERSITY.  
ASSOCIATION OF ST. PETER'S PENCE, DUBLIN.  
POLAND.  
LITURGICAL QUESTIONS.  
DOCUMENTS.  
NOTICES OF BOOKS.

## THE SEE OF CLONMACNOISE IN THE SIXTEENTH CENTURY.

In the beginning of the sixteenth century the See of St. Kieran was reckoned among the dioceses of the ecclesiastical province of Tuam. Dr. Walter Blake was then its bishop; he was a native of Galway, and Canon of Enaghdone, and by the provision of Pope Innocent VIII., was appointed to this See on the 26th of March, 1487. During twenty-one years he governed the faithful of Clonmacnoise with prudence and zeal, and died in May, 1508.

Thomas O'Mullally was appointed his successor the same year, and after administering this diocese for five years, was, in 1513, translated to the archiepiscopal see of Tuam.

There are still preserved in the Vatican archives two original letters written by King Henry VIII., on the 18th of June, 1515, soliciting the appointment of Father Quintinus Ohnygyn, of the Order of St. Francis, as successor to Dr. Mullally. These letters should, of themselves, suffice to set at rest for ever the plea which some modern theorists have advanced, that the course pursued by the English monarch in the latter years of his reign, in appointing bishops by his own authority to the episcopal sees, was the traditional right of the crown, ever exercised by him and his predecessors on the throne of England. The first letter is addressed to the reigning pontiff, Leo X., as follows:

"Sanctissimo, Clementissimoque Dño nostro Papae.

"Beatissime pater, post humillimam commendationem et devotissima pedum oscula beatorum. Certiores facti, Cluanensem Ecclesiam in Dominio nostro Hiberniae per translationem Revmi Patris Dñi Thomae ejus novissimi Episcopi ad Archi-Episcopatum Tuamensem vacare, venerabilem ac religiosum virum fratrem Quintinum Ohnygyn ord. min. virum doctum, gravem, circumspectum et probum, multorum testimonio maxime idoneum esse cognovimus qui

dictae Ecclesiae praeficiatur. Quapropter Vestrae Sanctitati ipsum commendamus, eamque rogamus, ut eundem fr. Quintinum praedictae Cathedrali Ecclesiae Cluanensi per dictam translationem vacanti praeficere et Episcopum constituere dignetur, quem ut Deo acceptum, sic perutilem eidem Ecclesiae pastorem futurum arbitramur. Et felicissime valeat eadem Vestra Sanctitas, Quam Deus Altissimus longaeвам conservet.

"Ex Palatio nostro Grenwici;

"die xviii. Junii 1515.

"Ejusdem Sanctitatis Vestrae

"Devotissimus atque obsequentissimus filius

"Dei gratia Rex Angliae et Franciae ac Dom. Hibae.

"HENRICUS".

The second letter was addressed to Cardinal Julius de Medicis, and is dated the same day. It seeks to conciliate for the petition contained in the letter first cited, the patronage of Cardinal de Medicis, who was known to exercise unbounded influence in the councils of Pope Leo:

"Henricus Dei Gratia Rex Angliae et Franciae, ac Dominus Hiberniae, Revmo. in Christo patri D. Julio tituli S. Mariae in Dominica S. R. Ecclesiae Diacono Cardinali nostroque ac Regni nostri in Romana curia Protectori et amico nostro charissimo salutem.

"Commendamus in praesentia Ssm. D. N. venerabilem religiosum virum fr. Quintinum Ohnygyn, virum doctum, prudentem et vitae integritate probatum, Suamque Sanctitatem rogamus ut eundem fratrem Quintinum Ecclesiae Cluanensi, per Reverendi Patris Thomae ejus postremi Episcopi ad Archiepiscopatum Tuamensem translationem vacanti praeficere et praesulem constituere dignetur. Quare pergratum nobis erit ut Vestra Revma Dominatio relationem de dicta Ecclesia, ut moris est, facere et ejusdem fratris Quintini procuratoribus in Bullarum expeditione favorem suum praestare non gravetur.

"Ex Palatio nostro Grenwici die xviii. Junii, 1515.

"HENRICUS".

Though the king was thus so eager to have Dr. O'Hnygyn appointed without delay to the vacant see, it was only in the month of November the following year (1516) that the consistorial investigation was made for the appointment of this prelate. The record of this inquiry is still happily preserved, and though there was only one witness present who was a native of Ardfert, by name Nicholas Horan, still, from his scanty evidence we may glean some interesting particulars regarding the ancient See and Cathedral of St. Kieran.

The town of Clonmacnoise, he says, is situated in the ecclesiastical province of Tuam, at the distance of a day's journey from the sea coast. It is small, consisting of only twelve houses, which are built of rushes and mud, and are thatched with straw. At one side flows the river Shannon, and the surrounding country is thickly set with trees. Towards the west stands the cathedral, which is in a ruinous condition. Its roof has fallen, and there is but one altar, which is sheltered by a straw roof: it has a crucifix of bronze, and only one poor vestment: its sacristy, too, is small, but its belfry has two bells. Enshrined in the church is the body of the Irish saint whose name it bears: nevertheless the holy sacrifice of the Mass is seldom offered up, and the whole revenue of the see amounts to only thirty-three crowns. As to Father Quintin, it was further stated, that having been himself in Rome, he was already well known to many members of the Sacred College, and he is described as "in Presbyteratus ordine constitutus, vir doctus, praedicator, bonis moribus et famâ, aliisque virtutibus praeditus". (ap. Theiner, page 519.)

Pope Leo X. did not hesitate much longer in appointing one so highly commended to the vacant see, and before the close of 1516 Dr. O'Hnygyn was consecrated Bishop of Clonmacnoise. During the twenty-two years which he ruled this diocese he displayed great energy in reanimating the fervour of the faithful and restoring the ancient splendour of religion. The cathedral was repaired: stained-glass windows and paintings set forth once more the triumph of faith, whilst many precious gems and other decorations were added, as voluntary offerings from his faithful flock. The following

description of the cathedral, extracted from Ware, will serve to give a more complete idea of this venerable structure:

"Nine other churches were subject to the cathedral, being, as it were, in one and the same churchyard, which contained about two Irish acres in circuit, on the west whereof the bishops of Clonmacnoise afterwards built their episcopal palace, the ruins of which are yet visible. The situation of this place is not unpleasant. It stands on a green bank, high raised above the river, but encompassed to the east and the north-east with large bogs. The nine churches were most of them built by the kings and petty princes of those parts for their places of sepulture; who though at perpetual wars in their lives, were contented to lie here peaceably in death. One of these churches, called Temple-Ri, or the King's Church, was built by O'Melaghlin, King of Meath, and to this day is the burial place of that family. Another, called Temple-Connor, was built by the O'Connor Don; a third and fourth by O'Kelly and MacCarthy More of Munster. The largest of all was erected by MacDermot, and is called after his name. The rest by others. Before the west door of MacDermot's church stood a large old-fashioned cross or monument, much injured by time, on which was an inscription in antique characters, which nobody that I could hear of could read. The west and north door of this church, although but mean and low, are guarded about with fine-wrought, small marble pillars, curiously hewn. Another of the churches hath an arch of a greenish marble, flat-wrought and neatly hewn and polished, and the joints so close and even set, that the whole arch seems but one entire stone, as smooth as either glass or crystal. The memory of St. Kieran is yet fresh and precious in the minds of the neighbouring inhabitants. In the great church was heretofore preserved a piece of the bone of one of St. Kieran's hands as a sacred relique. The 9th of September is annually observed as the patron-day of this saint, and great numbers from all parts flock to Clonmacnoise in devotion and pilgrimage. The cathedral was heretofore endowed with large possessions, and was above all others famous for the sepulchres of the nobility and bishops, as also for some monuments and inscriptions, partly in Irish and partly in Hebrew. Yet it declined by degrees, and was in the end reduced to a most shameful poverty". (*Harris's Ware*, pag. 166.)

The famous cross of Clonmacnoise, to which Ware refers in the above passage, was erected about the year 920; and though two centuries ago its

inscription was deemed illegible, the illustrious Petrie has deciphered it in our own times. The first part of the inscription is: "A prayer for Flann, son of Maelsechlainn"; and the second part is: "A prayer for Colman who made this cross over the King Flann". (Petrie, *Round Towers*, pag. 268.) This ancient cross is, moreover, richly ornamented with relievos and ornamental net-work: "The sculptures on its west side", says Petrie, "relate to the history of the original foundation of Clonmacnoise by St. Kieran; while the sculptures on the other sides represent the principal events in the life of our Saviour, as recorded in the Scripture; and hence the cross was subsequently known by the appellation of *Cros na Screaptra*, i.e., the Cross of the Scriptures, under which name it is noticed in the Annals of Tighernach at the year 1060". Amongst the sacred subjects thus sculptured on this venerable cross we may mention, the Crucifixion—the Blessed Virgin bearing the Divine Infant in her arms—and the adoration by the Magi.

Dr. O'Hnygyn died in 1538, and had for his successor Richard Hogan, who, after presiding for fourteen years in the See of Killaloe, was translated to Clonmacnoise on the 17th July, 1539: he, however, died the same year, and as Ware informs us, "within a few days after his translation". Another bishop was appointed without delay, and on the 15th December, 1539, Dr. Florence O'Gerawan or Kirwan was proclaimed in consistory as successor to St. Kieran. He held this See about fourteen years, and died soon after the accession of Queen Mary. The death of the good prelate was probably hastened by the sad ruin which fell upon his cathedral before the close of 1552. In the spirit of Vandalism to which the noblest monuments of our ancient faith became a prey at this period, the English garrison of Athlone plundered and pillaged the venerable church of Clonmacnoise—an event, the memory of which is still as vividly preserved in local tradition, as though it were only an occurrence of yesterday. It is thus recorded in the Annals of the Four Masters under the year 1552: "Clonmacnoise was plundered and devastated by the English (Galls) of Athlone, and the large bells were carried from the round tower. There was not left, moreover, a bell, small or large, an image or an altar, or a book, or a gem, or even glass in the window, from the walls of the church out, which was not carried off. Lamentable was this deed, the plundering of the city of Kieran, the holy patron".

In the "Patent Rolls", an invaluable work for which we are indebted to the persevering energy of Mr. Morrin, is registered under date of 15th September, 1541, "the confirmation of Florence Gerawan in the Bishoprick of Clonmacnoise, to which he had been promoted by the Pope; and his presentation to the vicarage of Lymanaghan in the same Diocese on his surrender of the Pope's Bull". (vol. I. pag. 82.) The editor, indeed, inadvertently substituted *Cloyne* for *Clonmacnoise* in this passage, the Latin name *Cluanensis* being common to both Sees. Cloyne, however, was at this time united with Cork, and Mr. Morrin may easily be pardoned this error, since it is shared by the learned De Burgo and by Dr. Maziere Brady in the Third volume of his "*Records of Cork, Cloyne, and Ross*". (London, 1864, pag. 97.) The surrender of the Pope's Bull was regarded at this period as a merely civil ceremony, required by law as a condition to obtain possession of the temporalities of the See, and we find an instance of it even in Catholic times on the appointment of Dr. Oliver Cantwell to the See of Ossory in the year 1488. At all events, the fact just now recorded, of the plunder of his church sufficiently proves that Dr. O'Kirwan, at the close of his episcopate, did not enjoy the favour and patronage of the courtiers of Edward VI.

Dr. Peter Wall, of the Order of St. Dominick, was the next bishop of this See. He had for a while been led astray by the novelties of the preceding reigns, but, as the Consistorial register records, returned repentant to the bosom of Holy Church, and was now absolved from all the censures which he had incurred. He was appointed Bishop on the 4th of May, 1556, and for twelve years remained in undisturbed possession of his See. He died in 1568; and though the heretical government annexed this diocese to Meath, the Sovereign Pontiff never recognized the union, and Clonmacnoise continued to be governed by Vicars till, after a widowhood of eighty years, it again received a chief pastor, in the person of Anthony M'Geoghegan, who was appointed its bishop on 22nd of January, 1647.

The reader may here expect some remarks on the vicissitudes of this see, and its successive connection with the provinces of Tuam and Armagh. When as yet there were only two archiepiscopal sees in our island, extending to Leath Cuinn and Leath Mogha, all Connacht, and with it Clonmacnoise, was comprised in the northern district. Gradually, however, Tuam grew into the proportions of a distinct province, and in the synod of

Rathbreasil, held by St. Celsus of Armagh in 1110, we find the five sees of Tuam, Clonfert, Cong, Killalla, and Ardchame or Ardagh, clustered together, though still subject to the Archbishop of Armagh. When at length, in the synod of Kells, in 1152, Tuam received the archiepiscopal pallium from the hands of Cardinal Paparo, Ardagh was assigned to the primatial see, but Clonmacnoise was referred to the new province of Tuam. This division soon became a subject of controversy. Tuam claimed the diocese of Ardagh for the western province, whilst Armagh declared that the Shannon was its boundary, and hence reckoned Clonmacnoise as a northern see, and at the same time claimed, as subject to its own metropolitan jurisdiction, the churches of Killmedoin, Croagh-patrick, Killtulagh, and some others of the diocese of Tuam. At the Council of Lateran, held in Rome in 1215, Felix O'Ruadhan, Archbishop of Tuam, and Eugene MacGillividen, Archbishop of Armagh, were both present, and laid their dispute before the great Pontiff Innocent III., and a decree soon after emanated, assigning indeed the above named churches to Tuam, but deferring to a future day the decision of the other points of controversy. In the meantime Armagh was in possession of both sees, and for more than a hundred years they continued thus subject to its metropolitan jurisdiction. As to Ardagh, the question was never after mooted; but towards the middle of the fourteenth century, Clonmacnoise seems to have been again numbered amongst the dioceses of the western province. This change probably took place during the episcopate of Bishop Symon, of the Order of St. Dominick, who, though omitted in the lists of Ware and De Burgo, was appointed to this see on the death of Dr. Henry, in 1349. This prelate, in the bull of his appointment, is declared to be "*Priorem fratrum ordinis Praedicatorum de Roscommon, Elfinensis diœcesis, in sacerdotio constitutum et cui de religionis zelo, litterarum scientia, vitae ac morum honestate et aliis virtutum meritis laudabilia testimonia perhibentur*" (*ap. Theiner, pag. 291*). At all events, soon after this period we find a list of Irish bishoprics which is now preserved in the Barberini archives at Rome, and in it the see of Clonmacnoise is referred to the province of Tuam. In the consistorial record of the appointment of Dr. O'Higgins, cited above, it is in like manner described as subject to the metropolitan jurisdiction of St. Jarlath's. The episcopate of Dr. O'Hnygyn seems to have been the period when at last all controversy was hushed, and this diocese was finally adjudged to the province of Armagh. This prelate assisted indeed at the Provincial Synod of Tuam, held in 1523, but, in the preamble to the Synod,

he is expressly described as "Dominus Kyntius (*i.e.*, Quintinus) Dei gratiâ Episcopus Cluanensis Provinciae Armachanae". (*Irish Arch. Soc. Miscellany*, vol. I., p. 77.) An official list of all the dioceses was drawn up and published during the pontificate of Pope Paul III., in 1546, and in it Clonmacnoise is marked as belonging to the primatial see. The era of persecution during the reigns of Elizabeth and James I. produced no change in this arrangement; and when a momentary peace again smiled on the Irish Church, in 1632, we find the vicar-apostolic of Clonmacnoise, Rev. John Gafney, after administering this see *for thirty-five years*, taking his place among the assembled fathers in the provincial synod of Armagh.

P. F. M.

## **CARDINAL CONSALVI AND NAPOLEON BONAPARTE.**

The concordat signed at Paris on the 15th July, 1801, between Pius VII. and Napoleon, is one of the most important facts of modern history. The magnitude of its results may best be learned from the contrast between the present state of religion in France and that which existed during, and for long after, the Revolution. "There is no negotiation", says M. Thiers, "which is more deserving of serious meditation than that of the Concordat"; but up to the present day the materials for such a study have been wanting. At length the full light of history has been let in upon the secret conferences in which the articles of that treaty were prepared; and the hand which has traced for us their history is the same which signed the Concordat itself. The memoirs of Cardinal Consalvi, who took part in the negotiations as the plenipotentiary of the Roman Pontiff, penned by him during the days of his exile, have at length been given to the world.<sup>[1]</sup> Since the Cardinal's death in 1824, these memoirs have been religiously left in the obscurity to which their author condemned them, and which he willed should last as long as the life of the principal personages of whom he has made mention in his pages. But when at length, in 1858, there appeared no reason for further silence, they were handed over by Consalvi's executors to M. Crétineau-Joly, who has published, not the original text, but what he assures us is a faithful version of it. We propose to give our readers a sketch of the history of the Concordat as it is recorded in these memoirs, and in doing so, we shall make use as often as we can of the Cardinal's own words.

The victory of Marengo, gained June 14, 1800, made the First Consul master of Italy. Five days after the battle, passing through Vercelli at the head of his army, he charged Cardinal Martiniana, bishop of that city, to communicate to the Pope his desire of negotiating a settlement of the religious affairs of France, and for this purpose he requested that Mgr. Spina, archbishop of Corinth, might be sent to him to Turin. His request was gladly complied with. But scarcely had that prelate entered Turin than he was ordered to set out at once for Paris, where Napoleon awaited his

arrival. It needed but a short stay in that capital to convince Mgr. Spina that the projects of concordat proposed by the consul were absolutely inadmissible, as being founded on a basis completely at variance with the laws of the Church. In vain did the Pope, in his anxiety to promote the good of religion, forward to Paris an amended plan of concordat, in which he made every concession permitted by his duty as head of the Church. The only answer he received was an intimation from M. Cacault, the French agent at Rome, that unless within five days the proposals made by Napoleon were accepted without the slightest change, the least restriction or correction, he, Cacault, should declare a rupture between the Holy See and France, and immediately leave Rome to join General Murat at Florence. To all these threats, and to the menace of the loss of his temporal power, the Pope had but one reply, that same reply which we have heard from Pius IX. in our own day—that *non possumus* against which all the assaults of the masters of legions have ever failed, and evermore shall fail.

M. Cacault, not daring to disobey the orders he had received, prepared at once for his departure, but his excellent heart and his affection for Rome suggested to him a means of preventing the mischief that was sure to follow from the anger of Napoleon, if once kindled against the Holy See. He proposed that Cardinal Consalvi, the Pope's secretary of state, should at once set out for Paris, to lay before the First Consul the imperious reasons by which the Holy Father was forced to refuse the proffered concordat. The French agent felt confident that, whilst it would flatter Napoleon's pride to be able to exhibit to the Parisians a Cardinal prime minister in waiting upon his will, the presence of Consalvi would also be a proof of the Pope's anxious desire to come to a favourable understanding on the affairs of the French Church. After mature deliberation this plan was adopted. The Cardinal took care that to the credentials usually given in cases of treaties, the Pope should add a most precise command that his envoy was to consider the project of concordat which had been corrected at Rome, and hitherto rejected at Paris, not only as the basis of the future treaty, but as the concordat itself. Powers were granted, however, to make such changes as did not alter the substance of the document. "I thought it necessary", says the Cardinal, "to have my hands tied in this way, because I foresaw that, unless I were in a position to show the French government how limited were my powers, they would soon force my entrenchments".

Leaving Rome in company with M. Cacault, Cardinal Consalvi arrived at Paris at night, after a tedious journey of fifteen days, and took up his abode with Mgr. Spina and his theologian, P. Caselli, afterwards Cardinal. Early in the morning he sent to acquaint Bonaparte of his arrival, and to learn at what hour he could have the honour of seeing the First Consul. He inquired also in what costume he should present himself, as at that period the ecclesiastical dress had been abandoned by the French clergy. These communications were made through the Abbé Bernier, who, from having been one of the leaders in the war of La Vendée against the Republic, had taken a great part in the pacification of these provinces upon the terms offered by the consular government, and had thereby secured for himself the favour of Bonaparte. He was appointed negotiator on the part of the government, and brought to his task much theological knowledge, diplomatic skill, and the advantage of being agreeable to both the contracting parties. This ecclesiastic soon returned to Consalvi with the intimation that the First Consul would receive him that same morning at two o'clock, and that he was to come in the fullest possible cardinalial costume. The Cardinal, however, did not gratify him in this latter particular, believing it to be his duty to present himself in the dress usually worn out of doors by cardinals when not in function. He was introduced to Napoleon under circumstances well calculated to embarrass a less evenly poised mind than his own. "I know", said the First Consul, "why you have come to France. I wish the conferences to be opened without delay. I allow you five days time, and I warn you that if on the fifth day the negotiations are not concluded, you must go back to Rome, as I have already decided what to do in such a case". Consalvi replied with calm dignity, and was soon afterwards conducted to his hotel. On the same day the Abbé Bernier came again to Consalvi, and asked him for a memorial setting forth the reasons which had constrained the Pope to accept the project which had been presented at Rome by M. Cacault. Although wearied by his long journey, the Cardinal spent the watches of the night in drawing up the memorial, which on the following day was communicated by the Abbé Bernier to Talleyrand, who, in turn, was to report upon it and lay it before the First Consul. The design of the memorial was to justify the refusal of the Concordat in the terms in which it had been drawn up by the French Government, and to show how reasonable and just were the modifications insisted on by the Pope. This design was not attained. Talleyrand wrote on

the margin of the first page of the memorial these words, well calculated to confirm Napoleon in his idea that the Pope's minister was actuated by personal enmity towards the French Government: "Cardinal Consalvi's memorial does more to throw back the negotiations than all that has hitherto been written on the subject". These words, although they produced an unfavourable impression on the First Consul, did not however retard the negotiations. The fatigue of these negotiations was very great. Twice each day for many days beyond the five granted by Bonaparte, the Cardinal held conferences with the Abbé Bernier, always in the presence of Mgr. Spina and P. Caselli. The nights were frequently spent in drawing up and correcting memorials to be presented to the government. It was at this period in the negotiations that the limit which the Pope had placed to the Cardinal's powers was found to be of the greatest practical advantage. The Abbé Bernier, when any difficulty occurred, incessantly declared that, however strong his own convictions, he could decide nothing of himself without referring the matter to the First Consul. On the contrary, the Cardinal was never allowed to despatch a courier to consult the Pope and receive his commands. The pretext for this prohibition was, that the Concordat should absolutely be finished the next day. Under these circumstances, his limited powers were the only means left to Consalvi by which he might resist the pressure brought to bear against him. The orders he had received from the Pope were, not to break off the negotiations and refuse the Concordat because he could not make it as favourable as might be, but, on the other hand, not to sign it by overstepping those instructions given him before he left Rome, of which we have spoken above. For twenty-five days the conferences continued. Every nerve was strained to avert a rupture on the one hand, and undue concessions on the other. The consequences of a rupture were frequently laid before the Cardinal during these days, which he calls "days of anguish", by the Count de Cobenzel, Austrian ambassador at Paris. He was asked to consider that if the First Consul should break with Rome, and definitely separate from the head of the Catholic Church, he would, as he had often threatened, force Germany, Spain, Italy, Switzerland, and Holland, to become the accomplices of his apostacy.

Finally, after incredible fatigue, after sufferings and anguish of every kind, the day came which brought with it the long-looked for conclusion of their

task. The Abbé Bernier, who reported every evening to Bonaparte the results of the daily conferences, at length announced that the First Consul accepted all the disputed articles, and that on the following day they should proceed to sign two authentic copies of the treaty, one copy to remain in the hands of each of the contracting parties. The project thus accepted, was substantially the same as the one which, having been amended at Rome, had been rejected by the French government before the Cardinal's journey, and which had led to M. Cacault's withdrawal from Rome within five days. It was arranged that the signatures should be six; three on each side. The Cardinal, Mgr. Spina, and P. Caselli, were to sign on behalf of the Holy See; Joseph Bonaparte, brother of the First Consul, Cretet, councillor of state, and the Abbé Bernier, on behalf of the French government. It was further arranged that the Abbé Bernier should call for the three ecclesiastics at a little before four o'clock on the following day, 14th July, and conduct them to the residence of Joseph Bonaparte, where the solemn act was to be completed.

"There", said Bernier, "we shall be able to do all in a quarter of an hour, as we have only to write six names, and this, including the congratulations, will not take even so long". He also showed them the *Moniteur* of the day, in which the government officially announced the conclusion of the negotiations. He added, that on the next day, anniversary of the taking of the Bastille, the First Consul intended to proclaim at a grand dinner of more than three hundred guests, that the Concordat was signed, and a treaty concluded between the Holy See and the government, of far more importance than even the Concordat between Francis I. and Leo X.

Shortly before four o'clock the next day, the Abbé Bernier made his appearance, having in his hand a roll of paper, which he said was the copy of the Concordat to be signed. On their arrival at Joseph Bonaparte's, they took their places at a table, and after a short discussion as to who should be the first to sign, Joseph yielded that honour to the claims of the Cardinal. He took the pen in his hand, and then followed a scene which must be described in his own words: "What was my surprise when I saw the Abbé Bernier place before me the copy which he took from his roll, as if to make me sign without reading it, and when on running my eye over it, I found that it was not the treaty which had been agreed on by the respective commissioners and accepted by the First Consul himself, but one altogether

different! The difference I perceived in the first lines led me to examine the rest with the most scrupulous care, and I satisfied myself that this copy not only contained the project which the Pope had refused to accept, but that it moreover included certain points which had been rejected as inadmissible before the project had been forwarded to Rome at all. This occurrence, incredible but true, paralysed my hand when about to sign my name. I gave expression to my surprise, and declared in plain language that on no account could I accept such a document. The First Consul's brother appeared equally astonished at hearing me speak so. He said that he did not know what to think of what he saw. He added that he had heard from the First Consul himself, that every thing had been arranged, and that there was nothing for him to do but affix his signature. As the other official, the state councillor, Cretet, made the same declaration, protesting his total ignorance, and refusing to believe my statement about the change of documents, until I had proved it by confronting the two copies, I could not restrain myself from turning rather sharply towards the Abbé Bernier. I told him that no one could confirm the truth of my assertion better than he could; that I was exceedingly astonished at the studied silence which I observed him to keep in the matter; and that I expressly called upon him to communicate to us what he had such good reason to know.

"With a confused air and in an embarrassed tone, he stuttered out that he could not deny the truth of my words and the difference between the copies of the Concordat, but that the First Consul had given orders to that effect, affirming that changes were allowable as long as the document was not signed. 'And so', added Bernier, 'he insists on these changes, because upon mature deliberation he is not satisfied with the stipulations we have agreed upon'.

"I will not here relate what I said in answer to a discourse so strange.... I spoke warmly of this attempt to succeed by surprise; I resolutely protested that I would never accept such an act, expressly contrary to the Pope's will. I therefore declared that if, on their part, they either could not or would not sign the document we had agreed upon, the sitting must come to an end".

Joseph Bonaparte then spoke. He depicted the fatal consequences which would result to religion and to the state from breaking off the negotiations; he exhorted them to use every means in their power to come to some

understanding between themselves, on that very day, seeing that the conclusion of the treaty had been announced in the newspapers, and that the news of its having been signed was to be proclaimed at to-morrow's grand banquet. It was easy, added he, to imagine the indignation and fury of one so headstrong as his brother, when he should have to appear before the public as having published in his own journals false news on a matter of such importance. But no arguments could persuade the Cardinal to negotiate on the basis of the substituted project of Concordat. He consented, however, to discuss once more the articles of the treaty on which they had agreed before. The discussion commenced about five o'clock in the evening. "To understand how serious it was, how exact, what warm debates it gave rise to on both sides, how laborious, how painful, it will be enough to say that it lasted without any interruption or repose for nineteen consecutive hours, that is to say, to noon on the following day. We spent the entire night at it, without dismissing our servants or carriages, like men who hope every hour to finish the business on which they are engaged. At mid-day we had come to an understanding on all the articles, with one single exception". This one article, of which we shall speak later, appeared to the Cardinal to be a substantial question, and to involve a principle which, as has often been the case, the Holy See might tolerate as a fact, but which it could never sanction (*canonizzare*) as an express article of a treaty. The hour when Joseph Bonaparte must leave to appear before the First Consul was at hand, and "it would be impossible", says the Cardinal, "to enumerate the assaults made on me at that moment to induce me to yield on this point, that he might not have to carry to his brother the fatal news of a rupture". But nothing could shake the resolution of the Papal minister or lead him to act contrary to his most sacred duties. He yielded so far, however, as to propose that they should omit the disputed article, and draw out a copy of the Concordat in which it should not appear, and that this copy should be brought to Bonaparte. Meantime the Holy See could be consulted on the subject of the article under debate, and the difficulty could be settled before the ratification of the Concordat. This plan was adopted. In less than an hour, Joseph returned from the Tuileries with sorrow depicted on his countenance. He announced that the First Consul, on hearing his report, had given himself up to a fit of extreme fury; in the violence of his passion he had torn in a hundred pieces the paper on which the Concordat was written; but finally, after a world of entreaties and arguments, he had consented with

indescribable repugnance, to admit all the articles that had been agreed on, but with respect to the one article which had been left unsettled, he was inflexible. Joseph was commanded to tell the Cardinal that he, Bonaparte, absolutely insisted on that article just as it was couched in the Abbé Bernier's paper, and that only two courses were open to the Pope's minister, either to sign the Concordat with that article inserted as it stood, or to break off the negotiation altogether. It was the Consul's unalterable determination to announce at the banquet that very day either the signing of the Concordat, or the rupture between the parties.

"It is easy to imagine the consternation into which we were thrown by this message. It still wanted three hours to five o'clock, the time fixed for the banquet at which we were all to assist. It is impossible to repeat all that was said by the brother of the First Consul, and by the other two, to urge me to yield to his will. The consequences of the rupture were of the most gloomy kind. They represented to me that I was about to make myself responsible for these evils, both to France and Europe, and to my own sovereign and Rome. They told me that at Rome I should be charged with untimely obstinacy, and that the blame of having provoked the results of my refusal would be laid at my door. I began to taste the bitterness of death. All that was terrible in the future they described to me rose up vividly before my mind. I shared at that moment (if I may venture so to speak) the anguish of the Man of Sorrows. But, by the help of Heaven, duty carried the day. I did not betray it. During the two hours of that struggle I persisted in my refusal, and the negotiation was broken off.

"This was the end of that gloomy sitting which had lasted full twenty-four hours, from four o'clock of the preceding evening to four of that unhappy day, with much bodily suffering, as may be supposed, but with much more terrible mental anguish, which can be appreciated only by those who have experienced it.

"I was condemned, and this I felt to be the most cruel inconvenience of my position, to appear within an hour at the splendid banquet of the day. It was my fate to bear in public the first shock of the violent passion which the news of the failure of the negotiations was sure to rouse in the breast of the First Consul. My two companions and I returned for a few minutes to our

hotel, and after making some hasty preparations, we proceeded to the Tuileries.

"The First Consul was present in a saloon, which was thronged by a crowd of magistrates, officers, state dignitaries, ministers, ambassadors, and strangers of the highest rank, who had been invited to the banquet. He had already seen his brother, and it is easy to imagine the reception he gave us as soon as we had entered the apartment. The moment he perceived me, with a flushed face and in a loud and disdainful voice, he cried out:

"Well, M. le Cardinal, it is, then, your wish to quarrel! So be it. I have no need of Rome. I will manage for myself. If Henry VIII., without the twentieth part of my power, succeeded in changing the religion of his country, much more shall I be able to do the like. By changing religion in France, I will change it throughout almost the whole of Europe, wherever my power extends. Rome shall look on at her losses; she shall weep over them, but there will be no help for it then. You may be gone; it is the best thing left for you to do. You have wished to quarrel—well, then, be it so, since you have wished it. When do you leave, I say?"

"After dinner, General", calmly replied the Cardinal.

### **FOOTNOTE:**

[1] *Mémoires du Cardinal Consalvi, secrétaire d'Etat du Pape Pio VII., avec un introduction et des notes, par J. Crétineau-Joly.* Paris, Henri Plon, Rue Garencière, 8, 1864. 2 vol. 8vo, pagg. 454-488.

(TO BE CONCLUDED IN OUR NEXT.)

## ST. BRIGID'S ORPHANAGE.

*St. Brigid's Orphanage for Five Hundred Children.* Eighth Annual Report.  
Powell, 10 Essex Bridge, Dublin.

It would be interesting to trace the various arts and devices which have been adopted for the propagation of Protestantism in this country. Its authors certainly never intended to spread it through the world in the way in which the Gospel was introduced by the disciples of our Lord. The apostles gained over unbelievers to the truth by patience, by prayer, by good example, and by the performance of wonderful works. Their spirit was that of charity, their only object was the salvation of souls. So far from being supported by an arm of flesh, all the powers of the earth persecuted them and conspired for their destruction.

But how was Protestantism propagated in Ireland? By acts of parliament fraudulently obtained, by the violence and influence of two most corrupt and unprincipled sovereigns—Henry VIII. and Elizabeth. Under their sway great numbers of Irish Catholics were put to death because they would not renounce the ancient faith; convents and monasteries were suppressed because their inmates were faithful to their vows; the parochial clergy and bishops were persecuted and spoiled, and many put to death, because they adhered to the religion of their fathers, and would not separate themselves from the communion of the Catholic Church, spread over the whole world.

Moreover, the property of the Catholics was confiscated, and the nobles of the land were reduced to poverty, because their consciences would not allow them to bow to the supremacy of the crown in religious matters. What shall we say of the ingenious system of penal laws, which, with Draconian cruelty, was enacted against Catholicity? A father was not allowed to give a Catholic education to his children; and the child of Catholic parents, if he became a Protestant, could disinherit his brothers, and reduce his father to beggary. Catholic education and Catholic schools were proscribed. A Protestant university was instituted and richly endowed with confiscated property, in order that it might be an engine for assailing Catholicity, and a

bulwark of Protestantism. Charter schools were established for the purpose of infecting poor children with heresy. A court of wards was instituted, in order that the children of the nobility might be seized on, and brought up in the errors of the new religion. It was in this way that the Earls of Kildare and other noble families lost their faith. Catholics were excluded from all offices of trust; they could not be members of parliament, they had no right of voting at elections, and they were not even allowed to hold leases of the lands from which their fathers had been violently and unjustly expelled. Such were the *evangelical* arts adopted to spread Protestantism in Ireland. What a contrast with the means employed by Providence to propagate the Gospel of Jesus Christ!

Thanks be to God, the faith of the people of Ireland overcame all the agencies which were employed for its destruction, and is now producing wonderful works of piety and charity at home, and bringing the blessings of salvation to foreign lands that heretofore were sitting in darkness and the shades of death. However, active efforts are still made to propagate the religion of Henry VIII. and Elizabeth, and it is hoped that what those corrupt and wicked, but powerful and despotic, sovereigns could not effect by fire and sword, by cruel penal laws, and confiscation of property, may be compassed by a degraded and contemptible system of pecuniary proselytism, which consists in collecting money in England for the purpose of bribing poor Catholics to become hypocrites and to deny their faith, or of purchasing children from miserable or wicked parents, in order to educate them in the religion, whatever that may be, of the Church Establishment, or more probably in no religion at all.

The Report of St. Brigid's Orphanage, mentioned at the head of this notice, gives most interesting details regarding this new method of propagating the errors of Luther and Calvin. This document, though brief, is most worthy of the perusal of every Catholic. It describes the activity and perfidy of the proselytisers, and it shows that they have immense resources, even hundreds of thousands of pounds per annum, at their disposal. The zeal of those men and their sacrifices in a bad cause, must be a reproach to Catholics, if they are not ready to stand forth and exert themselves in defence of the Holy Catholic and Apostolical Church, out of which there is no salvation.

The Association of St. Brigid in the few years of its existence has saved a large number of children from the fangs of proselytism. It has been able to perform so great a work of charity because its funds, though small, are managed with great economy. No expense is incurred for buildings, or for the rent of houses, or for a staff of masters and mistresses. The ladies who manage the orphanage receive no remuneration, but give their services for the love of God. The poor orphans are sent to the country, and placed under the care of honest and religious families, who, for five or six pounds for each per annum, bring them up in the humble manner in which the peasants of Ireland are accustomed to live. In this way the orphans acquire that love for God, and that spirit of religion, for which this country is distinguished, and, at the same time, they become strong and vigorous like the other inhabitants of the country, and are prepared to bear the hardships to which persons of their class are generally exposed in life. Were those children educated in large orphanages and in the smoky air of the city, they would perhaps be weak and delicate, incapable of bearing hard work, and likely to fail in the day of trial.

The education of the orphans of St. Brigid is not overlooked by the managers. They require the nurses not only to teach the children by word and example, but also to send them to good schools, where they learn reading, and writing, the catechism, and all that is necessary for persons in their sphere of life. Some of the ladies of the association call them together from time to time for examination, and considerable premiums are awarded to the families in which the children are found to have made the greatest progress. In this way great emulation is excited, and a considerable progress in knowledge is secured.

When the orphans grow up, as they are generally strong and healthy and able for farm work, they are easily provided for. Many of them are adopted by those who reared them. In this way great economy is observed, and this is a consideration which cannot be overlooked in a poor country like Ireland, where the charity of the faithful has so many demands upon it. However, everything necessary is attained, as the orphans are prepared to earn a livelihood in this world, and trained up in the practice of those Christian virtues and practices by which they may save their souls.

The report of the Orphanage is followed by the speeches which were made by several gentlemen at a late meeting of the Association, held on the 16th November last. They will be read with great interest. Canon M'Cabe's address thus sums up the results already obtained by St. Brigid's Association:—

"I thank God", said he, "that I am here to-day to testify to the glorious fact, that already 525 destitute orphans have found a home in St. Brigid's bosom; and that 247 of these, nursed into strength, moral and physical, have been sent forth into the world to fight the battle of life; and we may rest perfectly satisfied that if, at the hour of death, they are not able to exclaim with the apostle, 'I have kept the faith', the fault most certainly will not rest with the friends of their infant orphan days".

What a contrast with such happy results does the sterility of all Protestant religious undertakings present! This is illustrated in the course of his discourse by the learned Canon. We give the following extract:—

"Marshall, in his admirable book on *Christian Missions*, assures us that the sum annually raised in England for missionary purposes, is not less than two millions sterling; but he also tells us, on the authority of the *Times* newspaper, the consoling fact, that before one penny leaves England, half a million is consumed by the officers at home. We may rest quite satisfied that out of the £88,000 annually expended here in Dublin, a very decent sum goes every year to bring comfort, elegance, and luxury to the homes of pious agents and zealous ladies engaged in the good cause. We have also the consoling knowledge that English gold and the grace of conversion are very far, indeed, from correlatives. Even in pagan lands its only power is to corrupt the hearts of those to whom it purports to bring tidings of Gospel truth. The spirit which influences the missionaries whom it sends forth, and the converts which it wins, is beautifully illustrated by a story told by a missionary—Mr. Yate. He holds the following dialogue with a converted New Zealander:—'When did you pray last?' 'This morning'. 'What

did you pray for?' 'I said, O Christ, give me a blanket in order that I may believe'. This same Mr. Yate innocently records a letter written to him by a New Zealand convert, which aptly strikes off the character of master and disciple. 'Mr. Yate, sick is my heart for a blanket. Yes, forgotten have you the young pigs I gave you last summer? Remember the pigs which I gave you; you have not given me any thing for them. I fed you with sucking pigs; therefore I say, don't forget'. Need we wonder that such converts and such teachers were equally strangers to the blessings of Divine grace, and that the success of their preaching may be universally summed up in the words of a report which a famous Baptist preacher gave of his year's harvest. 'During last year', he writes, 'I had 25 candidates; out of that number six died, seven ran away, six are wavering backwards and forwards, and six are standing still'. So the good man's success was represented by large zero. The same characteristics in teacher and disciple mark the history of the crusade carried on against the religion of Ireland. The Irish New Zealander expects his blanket as the grand motive power of believing in souperism. The Irish Mr. Yate gets his 'sucking pig', and very often is ungrateful to his benefactors. In one word, if any success attend the efforts made by the proselytiser, it is read in the total overthrow of the morals as well as the faith of their victims".

Not to be too long, we merely refer the reader to Alderman Dillon's speech, in which he shows that the Protestant Church Establishment has been for centuries and is at present the unhappy source of all the evils of Ireland. With him we join in a fervent wish that a political institution, the creature and the slave of the state, an institution so useless and so mischievous, may soon reach the end of its career. Its present position may be understood from the following statistics given by Mr. Dillon, and which are founded on the authority of the last census:—

"The present Protestant population of the diocese of Kilfenora—251, men, women, and children—is less than that of the Jews in the city of Dublin, and could be removed in a few omnibuses; that of Kilmacduagh, consisting of 434 persons,

would not fill one room in the Catholic Parochial Schools at Ennistymon, in that diocese; the smallest rural Catholic Chapel in the diocese of Emly would be thinly filled with the 1,414 professing Anglicans in that diocese; the new Catholic Church in Ballinasloe would be comparatively empty with a congregation composed of the 2,521 Protestant inhabitants of the diocese of Clonfert; whilst, through the Cathedral of Waterford, three times more Catholics pass on Sunday, during the hours of Divine worship, than the 2,943 Protestants in the whole of that diocese. In fact, the single parish of St. Peter's, in the City of Dublin, contains, according to the Census of 1861, more Catholics than there are Protestants in the five dioceses just named, together with those in the six other dioceses of Achonry, Cashel, Killaloe, Ross, Lismore, and Tuam; the Protestant population of these eleven dioceses, amounting to 38,962 persons, and that of the one Catholic parish, to upwards of 40,000 souls. There are as many Catholics in the City of Limerick as there are Protestants in the whole five counties of Connaught; there are more Catholics, by 23,000, within the municipal bounds of the city of Dublin than there are Anglicans in the twelve counties of Leinster; there are many thousands more Catholics in every county in Ulster, save the small county Fermanagh, than there are Protestants in the whole province of Munster; and, finally, the Anglican population of the kingdom exceeds that of the Catholics of the single county of Cork by only about 70,000 souls. In no province, no county, no borough in Ireland, can the Anglican population show a majority".

We conclude by recommending the Orphanage of St. Brigid to the charity, not only of Dublin, but of all Ireland. It is a national institution. In a few years it has rendered great services to the country at large and to religion by saving so large a number of children from error and perversion; it is conducted on principles of the strictest economy, so necessary in the depressed state to which our population is reduced; and it is especially recommended by the way it brings up the poor orphans, assimilating them to our healthy and vigorous country people, and inspiring them with the same love for God and fatherland which distinguishes the peasants of

Ireland. St. Brigid, the Mary of Ireland, will not fail to protect all who assist her orphans.

# THE MSS. REMAINS OF PROFESSOR O'CURRY IN THE CATHOLIC UNIVERSITY.

NO. III.

*The Rule of St. Carthach, ob. 636.—Part II.*

## OF THE CONDUCT OF A MONK.

67. If you be a monk under  
government,  
Cast all evil from your  
hands;  
Abide in the rights of the Church  
Without laxity, without fault,

68. Without quarrel, without  
negligence,  
Without dislike to any one,  
Without theft, without falsehood,  
without excess,  
Without seeking a better  
place,

69. Without railing, without  
insubordination,  
Without seeking for great  
renown,  
Without murmur, without  
reproach to any one,  
Without envy, without pride,

70. Without contention, without  
self-willedness,

Without competition,  
without anger,  
Without persecution, without  
particular malice,  
Without vehemence, without  
words,

71. Without languor, without  
despair,  
Without sin, without folly,  
Without deceit, without temerity,  
Without merriment, without  
precipitance,

72. Without gadding, without haste,  
Without intemperance—  
which defiles all—  
Without inebriety, without jollity,  
Without silly, vulgar talk;

73. Without rushing, without  
loitering,  
With leave for every act;  
Without paying evil for evil,  
In a decayed body of clay;

74. With humility, with weakness,  
Towards uncommon,  
towards common;  
With devotion, with humbleness,  
With enslavement to every  
one.

75. In voluntary nocturns,  
Without obduracy, without  
guile,  
Waiting for your rewards  
At the relics of the saints.

76. With modesty, with meekness,  
    With constancy in  
        obedience;  
With purity, with faultlessness  
    In all acts, however trivial.
77. With patience, with purity,  
    With gentleness to every  
        one;  
With groaning, with praying  
    Unto Christ at all hours;
78. With inculcation of every truth,  
    With denunciation of every  
        wickedness,  
With perfect, frequent  
    confessions  
    Under direction of a holy  
        abbot;
79. With preservation of feet, and  
    hands,  
    And eyes, and ears,  
And heart, for every deed  
    Which is due to the King  
        above;
80. With remembrance of the day of  
    death  
    Which is appointed to all  
        men;  
With terror of the eternal pain  
    In which [souls] shall be  
        after the Judgment.
81. To welcome the diseases,  
    Patience in them at all times,

With protection to the people of  
heaven—  
It is a holy custom.

82. To reverence the seniors,  
And to obey their directions,  
To instruct the young people  
To their good in perfection.

83. To pray for our cotemporaries,  
Greatly should we love it,  
That they barter not their Creator  
For the obdurate,  
condemned demon.

84. To forgive every one  
Who has done us evil,  
In voice, in word, in deed,  
Is the command of the King  
of the Heavens.

85. To love those who hate us  
In this Earthly world;  
To do good for the persecutions,  
Is the command of God.

### **FOR THE CELE DE (CULDU), OR THE REGULAR CLERIC.**

86. If we be serving the priestly  
office,  
It is a high calling;  
We frequent the holy church  
At [canonical] hours  
perpetually.

87. When we hear the bell—

The practice is indispensable

---

We raise our hearts quickly up,  
We cast our faces down;

88. We say a *Pater* and a *Gloria*,  
That we meet no curse;  
We consecrate our breasts and  
our faces  
With the sign of the Cross of  
Christ.

89. When we reach the church  
We kneel three times;  
We bend not the knee in  
[worldly] service  
In the Sundays of the living  
God.

90. We celebrate, we instruct,  
Without work, without  
sorrow;  
Illustrious the man whom we  
address,  
The Lord of the cloudy  
Heavens.

91. We keep vigils, we read prayers,  
Every one according to his  
strength;  
According to your time, you  
contemplate  
The Glory until the third  
hour.

92. Let each order proceed as  
becomes it,

According as propriety shall  
dictate;  
As to each it is appointed,  
From the third hour to noon.

93. The men of holy orders at  
prayers,  
To celebrate Mass with  
propriety;  
The students to instruction,  
Accordingly as their strength  
permits;

94. The youngsters to attendance,  
Accordingly as their clothes  
will allow;  
For a lawful prey to the devil is  
Every body which does  
nothing.

95. Occupation to the illiterate  
persons,  
As a worthy priest shall  
direct;  
Works of wisdom in their mouths,  
Works of ignorance in their  
hands.

96. The celebration of every  
[canonical] hour  
With each order we perform;  
Three genuflexions before  
celebration,  
Three more after it.

97. Silence and fervour,  
Tranquillity without grief,

Without murmur, without  
contention,  
Is due of every one.

## **OF THE ORDER OF REFECTION, AND OF THE REFECTORY.**

98. The Rule of the Refectory after  
this,  
It is no injury to it to  
mention it;  
It is for the abbot of proper orders  
To judge each according to  
his rank.

99. The question of the refectory at  
all times,  
Thus is it permitted:  
An ample meal to the workmen,  
In whatever place they be.

100. Tenderness to the seniors  
Who cannot come to their  
meals,  
Whatever be their condition,  
That they come not to  
neglect.

101. Different is the condition of  
every one;  
Different is the nature of  
every wickedness;  
Different the law in which is  
found  
The adding to a meal.

102. Sunday requires to be  
    honoured,  
    Because of the King who  
        freed it;  
The feast of an apostle, noble  
    martyr,  
And the feasts of the saints,
103. Be without vigil, with  
    increased meals.  
    A tranquil, easy life  
From the night of great Christmas  
    Till after the Christmas of  
        the Star.<sup>[2]</sup>
104. The festivals of the King of  
    truth,  
    In whatever season they  
        happen,  
To honour them is proper,  
    To glorify them is right.
105. The fast of Lent was fasted by  
    Christ  
    In the desert within;  
The same as if it were your last  
    day, you eat not  
    The meal of every day in it.
106. To fast upon Sunday I order  
    not,  
    Because of the benignant  
        Lord;  
In the enumeration of the *tenth*,<sup>[3]</sup>  
    Nor of the year, it is not.
107. Joy, glory, reverence,  
    In great and glorious Easter,

The same as Easter every day,  
Until Pentecost, is proper,

108. Without fasting, without heavy  
labour,  
Without great vigils;  
In figure of the glorious salvation  
Which we shall receive  
*yonder.*

109. The feast of an apostle and  
martyr  
In the time of the great Lent;  
In figure of the righteousness  
Which we shall receive  
*yonder.*

110. The two fast days of the week  
Are to be observed by a  
proper fast,  
Accordingly as the time occurs,  
By him who has the  
strength.

111. Summer Lent or Winter *Lent*,<sup>[4]</sup>  
Which are bitter of practice,  
It is the laity that are bound to  
keep these,  
Who do not do so  
perpetually.

112. For as regards the ecclesiastics,  
Who abide in propriety,  
It is certain that of Lent and  
fasting  
All seasons are to them.<sup>[5]</sup>

113. The meritorious fast is,

And the abstinence so  
bright,  
From noon to noon—no false  
assertion;  
From remote times so it has  
been done.

114. A tredan [three days' total fast]  
every quarter to those  
Who fast not every month,  
Is required in the great territories  
In which is the Faith of  
Christ.

115. From the festival of the birth of  
John  
Till Easter, happy the  
combat,  
It is from vesper time to vesper  
time  
It is proper to go to table.

116. From Easter again to John's  
feast,  
It is from noon to noon;  
It is at evening of alternate days  
That comfort is allowed  
them.

117. When the little bell is rung,  
Of the refectory, which is  
not mean,  
The brethren who hear it  
Come all of them at its call;

118. Without running, without  
stopping,

Without passing proper  
bounds;  
Every man separately—it is no  
sad assertion  
Receives the punishment [of  
the board?]

119. Then they go into the house,  
And shed tears with fervour;  
They repeat a *Pater* for rest in  
God;  
They stoop down three  
times.

120. They then sit at the table,  
They bless the meal,  
Allelujah is sung, the bell is rung,  
Benediction is pronounced.

121. A senior responds in the house,  
He says: God bless you;  
They eat food, and drink,  
They return thanks after that.

122. If there be anything more  
choice  
Which one should thirst for,  
Let it be given in private  
To a senior by himself.

123. Let relief be given, if requisite,  
To those [penitents] who  
have devoutly fasted;  
Let them be deprived, if not  
requisite,  
Until they have done  
penance—the men.

124. After this, each man to his  
chamber,  
Without murmur, without  
anger,  
To reading, to prayers,  
To sighing unto his King;

125. To go afterwards to vespers,  
To celebrate them  
gracefully;  
To retire afterwards to rest  
In the place which he  
occupies;

126. To bless the house  
Entirely upon all sides;  
To attend the *canonical hours*,<sup>[6]</sup>  
Without delay, without fail;

127. To pray God for every one  
Who serves the Church of  
God,  
And for every Christian  
Who has come upon the  
earthly world.

## **OF THE DUTIES OF A KING.**

128. If you be a king, be a just king,  
You shall ordain no  
injustice;  
Illustrious is the Man who has  
appointed you—  
The Lord of holy Heaven!

129. You shall not be rash,

You shall not be prosperous  
and fierce;  
You shall be watchful of the All  
Powerful,  
Who has given thee the  
rank.

130. The wealth which you have  
obtained,  
If you do not be obedient to  
HIM,  
Shall be taken from you in a short  
time;  
They shall leave you in pain.

131. For it has been the full  
reduction  
To every king who has been,  
When you have bartered—  
hapless power!—  
Your righteousness for  
unrighteousness.

132. For it is through the  
unrighteousness of kings  
That all peace is disrupted  
Between the Church and the laity  
—  
All truth is broken.

133. For it is through their  
contention  
Comes every plague, it is  
known;  
It is through their excesses that  
there comes not  
Corn, or milk, or fruit;

134. It is through them come all  
mortalities,  
Which defy every power;  
It is through them that battle-  
triumph attends  
Every enemy over their  
countries;

135. It is through them come the  
tempests  
Of the angry, cold skies,  
The insects—the many  
distempers  
Which cut off all the people.

[There were a few stanzas more, but they are illegible.]

It is unnecessary for us to dwell at any great length on the importance of this venerable document. It not only illustrates in an extraordinary manner many points of Catholic dogma, but also shows that several of the disciplinary observances now in force in the Church were faithfully observed by our fathers in the seventh century. For instance, the respectful and loving homage due to the Blessed Mother of God is insinuated in the fifth strophe; in the ninth and following strophes we are taught the authority with which bishops are invested in the Church—authority which extends over every class no matter how exalted: "Check the noble kings: be thou the vigilant pastor". In the eighteenth and following we are instructed in the duty of honouring superiors as we honour Christ Himself. From the thirty-eighth to the sixty-sixth we are taught the great and most important offices of a priest, especially with regard to offering the Holy Body and Blood of Our Lord, the practice of daily Mass, the celebration of Requiem Masses for the dead, the administration of the Holy Communion in life and death, and the necessity of receiving the confessions of the faithful, both before Communion and at the last moment.

The disciplinary observances which we chiefly remark in the *Rule* are the raising up of the hands, the striking the breasts, and the genuflexions prescribed at the time of prayers and of the Holy Sacrifice; the perpetual

psalmody: "To sing the three times fifty (Psalms) is an indispensable practice"; the purity of life required in the priest: "There shall be no permanent love in thy heart, but the love of God alone; for pure is the Body which thou receivest: purely must thou go to receive it" (strophe 65). The use of the sign of the Cross is mentioned at strophe eighty-eight; and at eighty-six we find mention of the canonical hours, and at eighty-nine of the ancient custom, still preserved in many parts of the Liturgy, of praying erect, of not kneeling on Sundays, and of genuflecting on entering the church or place where God's glory dwells. The practice of fasting, and of other corporal austerities, is also inculcated; and while in the 102nd and 106th strophes, Sundays and festivals are exempted from the law of fasting, the fast of Lent (strophes 105, 109, and following), of Advent (strophe 111), of two fasting days in each week, (strophe 110), and of the Quarter Tense (strophe 114), are specially mentioned. We also find an enumeration of the festivals as they are celebrated by the Church even at our day; the Sundays, festivals of the apostles, of noble martyrs, and of all the saints; the "night of great Christmas", the Epiphany, when the star led the wise men to Bethlehem; Easter; "the festivals of the King of Truth"; Pentecost; and even the festival of the birth of St. John the Baptist.

On reading over this remarkable document we are struck with the truth of the remark of the eloquent Ozanam in the chapter of his work *Etudes Germaniques*, he has devoted to the "preaching of the Irish". He says: "We must not here repeat that accusation so often brought against the Church of Ireland, viz., that being instructed in sacred learning from Asia, she rejected the authority of the Popes; and that in union with the Culdees of Brittany, her monks preserved their religious independence in the midst of the universal spiritual bondage of the middle ages. If the founders of Irish monasteries, in the provisions and very terms of their rules, often recall to mind the institutions of the east, it was at Lerins and in the writings of Cassian they learned them. It was from Rome that Patrick received his mission; from Rome he received the language of his liturgy, the dogmas he taught, and the religious observances he propagated. Run over all that remains of these first centuries (of the Irish Church), the decrees of national synods, the penitentials, the legends: you will find in them everything which the enemies of Rome have rejected; the Eucharistic Sacrifice, the invocation of saints, prayers for the dead, the practice of confession, of

fasting, and of abstinence. The differences between her and the Churches of the continent are reducible to three points: the form of the tonsure, some of the minor ceremonies of baptism, and the time of keeping Easter, and these slight differences disappeared when the Fathers of the Council of Lene (A.D. 630), 'having had recourse', as they tell us, 'to the chief of Christian cities, *as children to their mother*', adopted the customs of the rest of Christendom. The religious communities of Ireland were not, then, the jealous guardians of some unheard-of heterodox Christianity. They were the colonies and (as it were) the out-posts of Latin civilization. They maintained learning as well as faith, and their schools imitated the Roman schools in Gaul, whence had come forth the bright luminaries of the Church, Honoratus, Cassian, Salvian, and Sulpicius Severus".

How beautiful is the description of one of these monastic rules, that of Benchor, found in the ancient Antiphonary of that monastery, published by Muratori, and quoted by the same distinguished writer:—

"Benchiur bona regula.  
Recta atque divina.  
Navis nunquam turbata,  
Quamvis fluctibus tonsa,  
Necnon vinca vera,  
Ex Ægypti transducto,  
Christo regina apta,  
Solis luce amicta.  
Simplex simul atque docta.  
Undecumque invicta  
Benchiur bona regula".

After giving this glowing picture of the monasteries of Ireland we are not surprised to find this same learned writer exclaiming, "That the monastic race of the ages of barbarism, the missionary race destined to bear aloft the light of faith and learning amidst the increasing darkness of the west, was the Irish people, whose misfortunes are better known than the great services they rendered to European civilization, and whose wonderful vocation has never been studied as it deserves".

In a future number we hope to enter again upon this most interesting subject, when reviewing a valuable contribution just given to our national literature by the learned Dr. Reeves on the *Culdees of the British Isles*.

### FOOTNOTES:

[2] Epiphany.

[3] Tithe.

[4] Advent.

[5] It is certain that all seasons are seasons of Lent and fasting to them.

[6] Matins (?).

## **ASSOCIATION OF ST. PETER'S PENCE, DUBLIN.**

This association was founded in the end of the year 1861, by the pious Catholics of Dublin, for the purpose of aiding the Pope in the distress and difficulties to which he has been reduced by the perfidy and violence of the Sardinian Government and other enemies of the Church of God.

Since its foundation, three years ago, this association has forwarded to Rome the sums of which we publish the annexed account. In a preceding collection, made on the first Sunday of Lent, 1861, about eighteen thousand pounds were contributed in Dublin, to which we do not refer on the present occasion.

All we shall now say is, that the generosity of the faithful of Dublin, and their anxiety to assist the Pope, supply the best proofs of the vitality and strength of their faith.

The Pope is the common father of all, the Chief Pastor of the Church of God, the Vicegerent of Christ, the inheritor of the dignity and office of St. Peter. He is the servant of the servants of God, obliged to toil incessantly for the welfare of the Church and the salvation of souls. Were the benign influence of the Popes destroyed, the Church would split into factions, and unity and Catholicity would cease to distinguish it.

Whilst the successor of St. Peter has the claims of a father and of a pastor, and so many other claims on his children and spiritual subjects, those who look with indifference on his afflictions or who rejoice when he is plundered by his enemies, are liable to the charge of want of filial affection, of gratitude, and indeed of a proper spirit of religion.

It is a consolation to know that the Catholics of almost every country and every diocese of the world have proved themselves worthy of their calling, and made great exertions to relieve the Pope. France, Spain, Germany, Belgium, Ireland, and even the oppressed and persecuted Catholics of Sardinia, have done their duty most nobly. The consequence is, that by the

aid of the alms of the faithful, the Pope is able to meet his engagements, and continue uninterruptedly the administration of the affairs of the Universal Church. And he is powerful in his weakness. At the same time, the excommunicated King of Sardinia and his ministers, notwithstanding the robberies they have committed, find their hands and their treasury quite empty, and must soon terminate in a state of public bankruptcy.

It is evident that our Divine Redeemer watches over the Holy See, and defeats all the assaults of the powers of darkness that are directed against it. It is Heaven that inspires the Catholics of the world to institute associations for the relief of the Vicar of Christ on earth, and to aid in bringing about the triumph of truth over error, and of light over darkness. Ireland, we trust, will always be ready to assist the good cause even from the depths of her poverty. The few who sneer at the sufferings of their father, and refuse him sympathy and relief, are unworthy of the name of Irish Catholics; they are degenerate children of forefathers who died rather than renounce their attachment to the See of Peter.

|                     |        |
|---------------------|--------|
| 1861—December 26th, | £18000 |
| 1862—February 19th, | 10000  |
| February 26th,      | 3000   |
| March 26th,         | 10000  |
| May 19th,           | 20000  |
| July 28th,          | 20000  |
| August 9th,         | 50000  |
| September 4th,      | 50000  |
| November 14th,      | 12000  |
| November 28th,      | 3000   |
| 1863—March 9th,     | 15000  |
| May 13th,           | 15000  |
| May 29th,           | 5000   |
| July 15th,          | 70000  |
| July 29th,          | 50000  |
| November 26th,      | 30000  |
| 1864—April 14th,    | 20000  |
| July 27th,          | 100000 |

November 8th,  $\frac{35000}{\pounds 5,46000}$

## POLAND.

His Grace the Archbishop of Dublin has honoured us by addressing to us the following letter:—

*To the Editors of the Irish Ecclesiastical Record.*

55 Eccles Street, 22nd December, 1864.

REV. GENTLEMEN,

The sad condition to which Russian despotism has reduced our Catholic brethren in Poland must be a source of grief and affliction to every Christian heart. Tens of thousands of the inhabitants of that generous country, so long the bulwark of Christendom against the encroachments of pagan or Mahometan hordes, have been condemned to pass their days in the deserts of Siberia, and to suffer an exile worse than death: noble families have been totally destroyed, and their children dispersed: even young ladies of the highest rank have been dragged from the convents where they were receiving a Christian education, and sent to pass their days among the Calmucks or the Tartars. The property of the Catholic nobility and gentry has been confiscated; many churches and colleges and almost all the convents and monasteries, have been stripped of their possessions, or suppressed. The scaffold has been purpled with the blood of innumerable victims, lay and clerical, and some bishops and hundreds of priests are now scattered over the continent of Europe, undergoing the sufferings of exile. "Crudelis ubique luctus, ubique pavor et plurima mortis imago". All these evils have been afflicted on Poland in the presence of Europe, and all the great powers have been silent, looking on with indifference. The Holy Father alone, acting with the usual spirit of the Apostolic See, has raised his voice in favour of suffering humanity; but heresy and schism shut their

ears against the words of truth, and Sarmatia is left to her unhappy fate.

The scenes now enacted in Poland cannot but remind us of the calamities with which our own dear country was visited in the days of Cromwell and the Puritans, when the streets of our towns ran with the blood of massacred Catholics, and multitudes of Catholic children were torn from their homes and sent to drag out a miserable existence in the swamps of Georgia or on the scorching sands of the Antilles.

Ireland having suffered in the same cause and in the same way as Poland, must feel deep sympathy with her afflicted sister—"Haud ignara mali, miseris succurrere disco". Hence, I am confident that our charitable people, though severely tried themselves, will do everything in their power to assist the poor exiled Poles, who have been obliged to take refuge in France and other countries of Europe, in order to avoid the sword or the halter of the Russian despot.

The clergy of France, encouraged by the exhortations and example of our Holy Father, who has not only raised his voice in favour of the poor exiles, but has founded a college for them in Rome—the clergy of France, always active and zealous in the protection and propagation of the faith, have instituted a society, with the view not only of providing for the present wants of the Poles now scattered through Europe, but also of taking steps to secure in times to come the existence of our holy religion in that unhappy country, by educating young students to fill the ranks of the priesthood.

A most distinguished prelate, Monseigneur Segur, well known for his innumerable works of charity and religion, is at the head of the society just mentioned, and the Very Rev. Abbé Perraud, a learned priest of the Oratory, and author of an admirable work on the state of Ireland, is its secretary. The society is patronised by the bishops and nobles of France.

Wishing you, reverend gentlemen, every blessing and every success, I remain, your obedient servant,

✠ PAUL CULLEN.

The president and secretary have addressed to me the two documents here annexed, which give a full and true account of the unhappy state of the Polish exiles, and of the sufferings of the clergy.

May I beg of you to publish them in the next number of the *Record*, a periodical which I hope will do good service to Irish ecclesiastical literature.

I will send £10 myself, to assist in relieving the persecuted Poles. If any of your readers wish to confide their contributions to me, I will be happy to remit them to that good friend, both of Ireland and Poland, the Abbé Perraud.

*Letter addressed to their Lordships the Archbishops and Bishops of England and Ireland by the President of the Association.*

The 30th of July, 1864, date of the circular of the Sovereign Pontiff, Pius IX., addressed to the Archbishops and Bishops of Poland, will ever be a memorable epoch for the martyred nation. From that day she may look with confidence to the future; Catholicism is saved in Poland, and with Catholicism the past history of the Polish nation.

In obedience to the voice of the Holy Father, *who solemnly warns us not to follow prescriptions contrary to the laws of God and of His Church*, and "placing, according to his word, everything else below religion and the Catholic doctrine", some of his sons assembled on the 24th of September, 1864, for the purpose of obtaining in behalf of Poland that which the Emperor of Russia refuses her.

Borrowing the very expressions of the Pontifical letter, the following are their engagements:

"The Czar wishes to extirpate Catholicism"; we will uphold it.—"He would drag the whole of his people into this wretched schism"; we will lend them our aid.—"He prohibits writings that are propitious to Catholicism"; we will print them.—"He impedes the communications with the Holy See"; we will free them from difficulty.—"He forbids showing, either by preaching or instructing, the difference that exists between truth and schism"; we will receive and propagate works that demonstrate this difference.

"Bishops are torn from their dioceses and sent into exile"; we should be proud to own them.—"The religious are expelled from their communities, and their monasteries are turned into barracks"; we are ready to offer them a refuge.—"Priests are cruelly persecuted, deprived of all they possess, reduced to poverty, exiled, thrown into prison or put to death"; we undertake to receive them with honour, to alleviate their sufferings, to create or to support houses of education, both elementary and of a higher order, so that the source of priesthood in Poland may not be dried up, and so as to disseminate the benefits of Christian education.—"Numbers of Catholics of every rank and age are removed to distant countries"; we will open our doors to them.

In a word, the nucleus of an exclusively religious association, under the denomination of "Work of Catholicism in Poland", has been formed in Paris, with the view of maintaining, "by all the means that charity can suggest", this generous nation in her fidelity to the Church.

Mgr. de Ségur, prelate of his Holiness' household and Canon of St. Denis, has consented to honour this most important work with his patronage.

The Rev. Father Pététot, superior-general of the Oratory, and the Rev. M. Deguerry, parish priest of the church of La Madeleine, at Paris, the Count Montalembert, and M. Cornudet,

councillor of state, have also kindly accepted the vice-presidentship.

Our first duty is to receive with sympathy the representatives of Polish heroism, men who have not hesitated between tortures and apostacy. Many of them were in the enjoyment of affluence at home; and after having proved in the last struggle the vitality of their invincible nation, the spirit of faith and of sacrifice is now the sole treasure which they possess.

Amongst the Poles now in Paris, there are representatives of every profession; employment must be found for them, either in the capital or the provinces. A neighbouring country of two millions and a half of inhabitants, Switzerland, has harboured about two thousand. There, not one of the exiles but has found both assistance and means of gaining his livelihood. An asylum even is being founded for the reception of invalids; a residence is offered to them. Public opinion in Switzerland is so favourable to the Poles, that in their presence even religious differences are done away with. What the Helvetian republic has effected, the whole of France will not fail to accomplish. So much for the more immediate necessities.

Whenever there is question of works of the apostleship in foreign lands, we are always ready to assist the missionary. Have we not a short time ago signalized our zeal for the Christians of Syria and Lebanon, and still more recently for the Bulgarian nation, for whose return to unity we may safely hope? What we require at present, and what is easier to perform, and less uncertain, is to maintain in her attachment to the Church a Catholic nation of 25 millions of men. To accomplish this, we must provide for the religious education of those whom the misfortunes of the times prevent from entering into the seminaries of Poland. The Holy Father has himself given the initiative, by opening a Polish seminary at Rome. Why should we not follow his example? At the time of the persecutions in Ireland, we counted in the north of France alone, no less than four colleges for the use of young Irishmen:

Saint-Omer, where the great O'Connell was formed: Douai, whence came in the time of Elizabeth, forty of England's early martyrs: Lille, and Paris.

Until such time as the extension of the work shall enable us to collect the necessary funds for the foundation and maintenance of these establishments, we would humbly request the bishops to admit into their large and small seminaries the young Poles who show signs of an ecclesiastical vocation. If, after preparatory studies, they could not all return to their mother country, their aid would be valuable for the conversion of different nations of the East.

As it is probable that this association of prayers and of alms will not be of long duration, the annual subscription is fixed at a minimum of 5 fr. Many of the faithful no doubt will not be satisfied with so small a contribution. Others, on the contrary, may group together to form it.

We would also request their Lordships the Bishops to be kind enough to appoint in each of their dioceses a member of their clergy who would have the charge of centralising the work and making it known, and who would enjoy the spiritual favours of the Sovereign Pontiff, who has ever been the protector and father of Poland. To every Catholic, to whatever country he may belong, this work is a question of honour, a protestation of the civilised world against barbarity.

Out of France we firmly hope our work will meet with deep sympathy, similar associations will be formed, and regular communications established between them.

May the blessed Virgin, Patroness of Poland, bless and second our efforts.

All communications and donations intended for the "Work of Catholicism in Poland" to be addressed to the Rev. Father Perraud, Priest of the Oratory, Director General of the Work, 44 Rue du Regard, Paris.

French and foreign newspapers favourable to Poland are requested to publish this act of foundation of the "Work of Catholicism in Poland".

*Letter to the Archbishop of Dublin from the Director-General of the Association.*

"Paris, 20th December, 1864,

"MY LORD ARCHBISHOP,

"The work, the plan of which we lay before you to-day, is one which recommends itself to your zeal and your love for the Church.

"The touching words of the Sovereign Pontiff have stirred us to lend assistance to martyred Poland. May the Church of Ireland second the Church of France in this endeavour, which is so noble, and, at this moment, so necessary.

"I venture to unite my humble voice with that of the pious prelate and of the eminent men who are at the head of this work, in the hope that the bishops and priests of Ireland will listen with favour to an appeal on behalf of a persecuted church and nation. Accept, my Lord, the expression of profound respect and lively gratitude with which I am,

"Your most devoted humble Servant,

"ADOLPHE PERRAUD,

"Director-General of the Work".

## LITURGICAL QUESTIONS.

One of the objects which the founders of the IRISH ECCLESIASTICAL RECORD had proposed to themselves from the very beginning of their undertaking was to offer to the Irish clergy in its pages an appropriate place for the discussion of liturgical questions. They judged that they could not better recommend this object to their readers than by laying before them a sample of the actual working of the liturgical department of an ecclesiastical periodical of long standing and renown. With this view it was resolved to insert in our early numbers some of the questions which from time to time had been asked by French clergymen in the *Revue des Sciences Ecclesiastiques* (edited by the learned Abbé Bouix), adding in each case the answers given by those charged with that part of the Review. No official character has ever been claimed for these answers by their authors, who invariably give for what they are worth the arguments on which their answers rest. In the same way the excellent *Archivio dell'Ecclesiastico* of Florence devotes every month a portion of its pages to the liturgical questions which are continually addressed to the Editor by the clergy of Northern Italy. We are happy to announce to-day that several distinguished ecclesiastics who have devoted much time and study to liturgical pursuits have undertaken to attend to any similar questions that may be addressed to the RECORD by the clergy of Ireland. Following the custom of the periodicals just mentioned, all information shall be withheld concerning the sources whence the questions have come, except where publicity is expressly desired. Every question with which we may be honoured, shall be carefully attended to. We hope that every priest will assist us in this effort to make the IRISH ECCLESIASTICAL RECORD a work of practical benefit to the clergy of Ireland.

We give to-day a collection of the decrees of the S. Congregation of Rites on various points of the Rubrics of the Missal. We extract them from the first Ratisbon edition of the *Manuale Ordinandorum*, March 1842. In order that the words of each decree of the S. Congregation may be distinguished from those of the editors, the former are printed in Italics.

## EX DECRETIS S. RITUUM CONGREGATIONIS.

### Ad § II. *De ingressu sacerdotis ad altare.*

1. Acolythus aut alius accendens cereos ante Missam, aut ante aliam sacram functionem, incipere debet a cereis qui sunt *a cornu evangelii, quippe nobiliori parte*. 12 Aug. 1253 (Anal. II. p. 2201).
2. *Non licet* sacerdotibus deferre manutergium supra calicem tam eundo quam redeundo ab altari. 1 Sept. 1703 in u. Pisaur.
3. Sacerdos pergens ad celebrandum et calicem manu sinistra portans, ad ianuam sacristiae *signet se, si commode fieri potest, aqua benedicta; sin minus, se abstineat*. 27 Mart. 1779 in u. Ord. Min. ad 14.
4. Si sacristia est post altare, *a sacristia ad illud e sinistra egrediendum, a dextera ad illam accedendum*. 12 Aug. 1854 in u. Brioc. ad 17.
5. Sacerdos Missam celebraturus transiens ante altare, ubi fit populi Communio, *non* debet permanere genuflexus, quousque terminetur Communio. 5 Jul. 1698 in u. Collen. ad 17.—In quaestione: quomodo se gerere debeat sacerdos celebraturus, dum *transit* ante altare, in quo sit *publice expositum* Ss. Sacramentum? An post factam genuflexionem detecto capite, *surgens* debeat *caput tegere*, donec ad altare pervenerit? an vero *detecto capite iter prosecui* ob reverentiam tanti Sacramenti sic publice expositi, cum rubrica Missalis Romani non videatur loqui de hac praecisa adoratione in casu de quo agitur? *servandae sunt rubricae Missalis Romani, quae videntur innuere, quod post factam adorationem genibus flexis, detecto capite, surgens caput operiat*. 24 Jul. 1638 in u. Urb.
6. Tam *in ingressu Sacerdotis ad altare, quam ante principium Missae, reverentia Sacerdotis debet esse profunda capitis et corporis, non capitis tantum, inclinatio, juxta rubricam* 8. April. 1808. in u. Compostell. ad 5.—*In accessu ad altare, in quo habetur Ss. Sacramentum, sive expositum, sive in tabernaculo reconditum et in recessu, in plano est genuflectendum; in infimo autem gradu altaris, quoties (alias ante altare) genuflectere occurrat* (e. g. in principio Missae). 12. Nov. 1831 in u. Mars. ad 51.—Inter Missam privatam a ministro *in transitu tantum ante medium altaris genuflectendum, (si Ss. Sacramentum inclusum est in tabernaculo), vel inclinandum*. 12. Aug. 1854 ad 70 et 71 (Anal. II. 2200).

7. *Si multae sunt particulae consecrandae, satius est eas ponere in pixide; [7] si paucae poni possunt in alia patena; nunquam vero in alio Corporali complicato.* 12. Aug. 1854 ad 19 (Anal. II. p. 2192)

8. *In Missis privatis non potest permitti ministro aperire Missale et invenire Missam; et servantur rubricae.* 7. Sept. 1816 in u. Tuden. ad 11; *neque potest permitti ministro, si fuerit sacerdos vel diaconus sive subdiaconus, ut praeparet calicem, et ipsum extergat in fine post ablutiones.* Ibid. ad 12.

#### *Ad § III. De principio Missae et Confessione facienda.*

*In Missa dicendum est Confiteor pure et simpliciter, prout habetur in Missali Romano, absque additione alicujus Sancti etiam Patroni, nisi adsit speciale indultum Apostolicae Sedis.* 13. Febr. 1666 in u. Ord. Min. ad 5; Jul. 1704 in u. Valent.

#### *Ad § IV. De Introitu, Kyrie, et Gloria.*

*In quaestione: an post signum crucis, quod fit in fine "Gloria in excelsis", "Credo" et "Sanctus" manus sint jungendae, etiamsi nihil hujusmodi praescribat rubrica? servantur rubricae,* 12. Nov. 1831 in u. Mars. ad 30.

#### *Ad § V. De Oratione.*

*Congruit, ut fert praxis universalis, praesertim Urbis, quod fiat inclinatio capitis, cum pronunciatur nomen Ss. Trinitatis, sicut fit, cum profertur nomen Jesus.* 7. Sept. 1816 in u. Tuden. ad 40.

#### *Ad § VI. De Epistola usque ad Offertorium.*

1. *Juxta rubricas in elevatione oculorum crux est aspicienda.* 22. Jul. 1848 in u. Adiacen. ad 3.

2. *Manus sinistra poni debet super missale ad Evangelium, cum dextera fit signum crucis super ipsum.* 7. Sept. 1816 in u. Tuden. ad 25.

3. *In Missis privatis ad verba "Et incarnatus est", Celebrans genuflectere debet unico genu.* 22. Aug. 1818 in u. Hispal. ad 10.

#### *Ad § VII. De Offertorio usque ad Canonem.*

1. In dubio: an in Missa privata, quando minister non est superpelliceo indutus, debeat eum, lecto Offertorio a Celebrante, ad altare ascendere, accipere et plicare velum calicis, vel hic ritus reservari debeat ministris superpelliceo indutis vel etiam Celebrans ipse debeat plicare velum et super altare ponere? *servanda est consuetudo*. 12. Aug. 1854 ad 69 (Anal. II. p. 2200).

2. In quaestione: utrum parvi cochlearis pro aqua in calicem infundenda usus sit omnibus licitus? *servanda est rubrica*. 7. Sept. 1850 in u. Rupel. ad 13.

3. *Praxis extergendi calicem cum purificatorio* ad abstergendas guttas vini adhaerentes lateribus interioribus cuppae calicis, quae aliquando resiliunt, dum praeparatur ipsemet calix, *magis congruit et summopere laudabilis est*. 7. Sept. 1816 in u. Tuden. ad 28.—*Relinqui vero potest Sacerdotis arbitrio* utrum purificatorium ponere velit super pedem calicis dum praeparatur (vinum ad offertorium infunditur), vel potius super patenam. Ibid. ad 29.

4. Oratio "Deus qui humanae" incipienda est a sacerdote eodem momento, quo benedicit aquam; *non* vero prius aqua benedicatur nihil dicendo, atque tunc demum, facto signo crucis, illa oratio incipiatur. 12. Aug. 1854 ad d. 25. (Anal. Jur. Pontif. II. p. 2193).

5. Cruces quæ fiunt super oblata a sacerdote, non debent fieri manu transversa sed *manu recta*. 4. Aug. 1663 in u. Dalmat. ad 4.—*In benedictionibus congruentior juxta rubricas et ritum videtur modus benedicendi manu recta, et digitis simul unitis et extensis*. 24. Jun. 1683 in u. Abbing. ad 6.

6. *Congruit, ut fert praxis universalis, praesertim Urbis*, quod fiat inclinatio capitis in fine Psalmi "Lavabo" (ad "Gloria Patri"), qui dicitur in Missa, sicut praescribitur in principio Missae. 7. Sept. 1816 in u. Tuden. ad 37.

#### Ad § VIII. De Canone usque ad Consecrationem.

1. Ad quaestionem: an Sacerdos dicere debeat "Te igitur" in principio Canonis, dum elevat manus et oculos; vel incipere debeat, dum est jam in profundo inclinatus? *servanda est rubrica de ritu servando in celebratione Missae tit. 8, num. 1, et altera Canonis praefixa*. 7. Sept. 1816 in u. Tuden. ad 33.

2. Omnes sacerdotes celebrantes, dum in Canone Missae Papam nominant, debent *juxta rubricam* caput inclinare. 23. Mai 1846 in u. Tuden. ad 6.

3. *In Canone nomine Antistitis non sunt nominandi superiores Regularium* 13. Febr. 1666 in decret. ad Missal. ad 11.—*Ii Religiosi, qui, Antistitis nomine tacito, ejus loco in precibus sive in Canone suae Religionis Superiorem nominant, contra caritatem faciunt.* 12. Nov. 1605 in u. Ulixbon.—*In Canone et in Collectis omnino, facienda est mentio de Episcopo etiam ab exemptis* 25. Sept. 1649 in u. Tornac. ad 6.

4. Debet Sacerdos pronuncians in Canone Missae nomen alicujus Sancti, de quo factum est Officium, vel saltem Commemoratio, facere inclinationem capitis. 7. Sep. 1816 in u. Tuden. ad 34—Nomen S. Joseph Sponsi B. M. V. non potest addi *in Canone*. *Permittitur vero hujus nominis additio in Collecta "A cunctis"*. 17. Sep. 1815 in u. Urbis et Orbis.

5. A "Hanc igitur oblationem" manus sacerdotis ita debent extendi, ut palmae sint apertae, pollice dextero super sinistrum in modum crucis *supra manus* posito. 4. Aug. 1663 in u. Dalmat. ad 5.

### FOOTNOTE:

[Z] Ex quo patet, "vas mundum benedictum", de quo rubrica esse *pixidem*.

[THE REMAINDER IN OUR NEXT.]

# DOCUMENTS.

## I.

### PLENARY INDULGENCE IN ARTICULO MORTIS.

*Rescript of Clement XIV. by which powers to grant the said Indulgence are given to Bishops in countries where Catholics live mixed with other religious denominations. Indulgence to be gained by invoking the sacred name.*

The experience of Catholics proves that nothing tends more effectually to promote practices of piety and to enkindle a religious spirit, than the doctrine of the Catholic Church regarding indulgences. Take, for example, the case of a plenary indulgence. How many penitential and meritorious works are required to secure a participation in so precious a treasure? The person wishing to gain an indulgence of this kind must diligently examine his conscience, excite himself to contrition for his sins, make an humble confession, and perform some penitential work in reparation for the past. Besides, the holy Sacrament of the altar must be worthily received, prayers recited for a pious purpose, and some work of charity or religion performed.

Considering the good thus done, the Church grants plenary indulgences to the faithful on many festivals; but she is never so liberal in dispensing her treasures, as when there is question of persons in immediate danger of death. When that dreadful moment arrives, as on it depends our fate for all eternity, reserved cases are no longer maintained, and all priests are allowed to absolve from every censure. For the consolation also of the dying, and to promote their spiritual welfare, every facility is granted for the obtaining of plenary indulgences.

Benedict XIV. treats at great length of this important matter in a Bull which commences "Pia mater", published on the 5th April, 1747. To each bishop who has once obtained from the Holy See the privilege of imparting indulgences *in articulo mortis*, he grants the power of communicating the same faculty to such priests subject to his jurisdiction as he may desire. In a

rescript of the Propaganda, dated 5th April, 1772, Clement XIV. extends that privilege very considerably for all countries where Catholics live mixed up with persons of other religious denominations; and when it happens that no priest can be found to grant the indulgence in the usual form, his Holiness, in the abundance of his charity, grants a plenary indulgence to all who invoke the holy name of Jesus at least in their heart, and who with Christian humility and resignation receive death from the hand of God, commending their souls into the hands of their Creator.

In order that the valuable privilege granted to the prelates of the Church and to the faithful in general may be known to all, we publish the rescript of Clement XIV., as it is found in Dr. Burke's *Hibernia Dominicana*, Appendix, page 936:—

"Ex Audientiâ Sanctissimi D. N. Clementis Papae XIV. habitâ 5  
Aprilis 1772.

"Ne Christifidelibus, inter Hereticos, et Infideles, in qualibet Orbis parte degentibus, et in ultimo vitae discrimine, constitutis, ea spiritualia auxilia desint, quae Catholica pia mater Ecclesia filiis suis a saecula recedentibus solet misericorditer impertiri: Sanctissimus Dominus Noster Clemens, divinâ Providentiâ Papa XIV., me infrascripto sacrae Congregationis de Propaganda Fide Secretario referente, pro eximia caritate, quâ illos fraterne complectitur, omnibus et singulis RR. PP. DD. Patriarchis, Archiepiscopis, Episcopis, Vicariis Apostolicis, necnon RR. Praefectis seu Superioribus missionum tam Cleri Saecularis, quam Regularis, inter Infideles et Hereticos, ut supra, modo existentibus, seu quocumque tempore extituri peramanter concedit facultatem impertiendi benedictionem, cun Indulgentia plenaria fidelibus praedictis, ad extremum agonem redactis: Cum ea etiam extensione ut facultatem hujusmodi Sacerdotibus, et respectivè missionariis, eorum jurisdictioni subjectis, pro locis tamen suarum Dioceseum, vel pro missionum districtibus tantum, communicare possint et valeant: dummodo in hac benedictione impertienda servetur formula prescripta a San. Mem. Benedicto

XIV. in Constitutione datâ 9 Aprilis, 1747, quae incipit *Pia mater*, inferius registranda.

"Quoniam autem facile continget ut aliqui ex praedictis Christifidelibus, ex hac vita decedant, quin Ecclesiae Sacramentis fuerint muniti, et absque Sacerdotis cujuslibet assistentia; ideo Sanctitas Sua, de uberi apostolicae benignitatis fonte, etiam illis plenariam Indulgentiam elargitur, si contriti nomen Jesu, corde saltem, invocaverint, et mortem de manu Domini, eâ quâ decet, christianâ animi demissione, et spiritus humilitate susceperint, animamque in manus Creatoris sui commendaverint. Quae prostrema Decreti pars ut Christifidelibus omnibus innotescat, eam in suis dioecesibus, ac missionibus, Antistites, et Superiores memorati identidem, et praesertim sanctae Visitationis tempore publicare curent et satagant.

"Datum ex aedibus Sac. Congregationis praedictae, die 5 Aprilis, 1772.

"STEPHANUS BORGIA, Secretarius".

## II.

### THE STATIONS OF THE CROSS FOR THE SICK.

The Holy See has long since granted to the general, the provincials and guardians of the Franciscan order, the faculty of blessing crucifixes, to enable sick persons, prisoners, and others, unable for lawful reasons to make the stations of the cross, to gain all the indulgences of the said stations.

Such persons have only to recite twenty times, the *Pater*, *Ave*, and *Gloria*, before the cross thus blessed, and which they are required to hold in their hands during these prayers.

Pius IX. in the following brief extends this faculty to those who in the Franciscan convents take the place of the guardians, when these latter for any reason are called away from home.

"Pius PP. IX.—*Ad perpetuam rei memoriam.*—Exponendum nuper Nobis curavit dilectus Filius Raphael a Ponticulo Minister Generalis ut praefertur Ord. Fr. Min. S. Francisci jam alias ab hac Sancta Sede facultatem concessam fuisse, cujus vi fideles vel infirmi vel carcere detenti aliave legitima causa impediti, recitantes viginti vicibus Orationem Dominicam, Salutationem Angelicam, et Trisagium ante Crucem, quam manu tenere debeant, benedictam a Ministro Generali Ord. Min. S. Francisci, vel Provinciali, aut a Guardiano quocumque dicti Ordinis indulgentiam Stationum Viae Crucis seu Calvariae lucrari valeant. Cum vero ut idem dilectus Filius Nobis retulit in nonnullis Regionibus Conventus praesertim recens erecti existant, qui Guardianos non habeant, sed Superiores qui Praesides nominantur, aut etsi habeant saepe eveniat ut vel Sacris Ministeriis, et spirituali proximorum commodo, aut etiam aliis negotiis peragendis operam impensuri a respectivis Conventibus per aliquod temporis spatium abesse debeant, quo tempore eorum vices gerunt, qui Vicarii Conventus nuncupantur, hinc fit ut saepe in dictis Regionibus nullus Frater ex eodem Ordine praesto sit auctoritate praeditus, quo piis fidelium votis et spirituali consolationi satisfieri possit. Quare praefatus Minister Generalis enixe Nobis supplicavit ut in praemissis opportune providere ac ut infra indulgere de benignitate Apostolica dignaremur. Nos fidelium commodo, quantum in Domino possumus consulere, et piis hujusmodi precibus obsecundare volentes Praesidibus nunc et pro tempore existentibus in Conventibus Fratrum Ord. Min. S. Francisci, qui Guardianos non habent, nec non Vicariis Conventuum ejusdem Ordinis, qui absentibus Guardianis respectivi Guardiani vices gerunt, facultatem memoratam, quae ab hac Sancta Sede alias Ministro Generali, Provinciali, et cuivis Guardiano praedicto Ministro Generali subdito concessa fuit benedicendi Cruces cum adnexis Indulgentiis Stationum Viae Crucis seu Calvariae, dummodo tamen omnia quae praescripta sunt ab eis servantur, tenore praesentium auctoritate Nostra Apostolica in perpetuum concedimus et elargimur. In contrarium facien. non obstan. quibuscumque.

"Datum Romae apud S. Petrum sub Annulo Piscatoris die XI.  
Augusti MDCCCLXIII. Pontificatus Nostri Anno Decimoctavo.

"Loco ✠ Sigilli.

"PRO DNO. CARD. PARACCIANI-CLARELLI.

"Io. B. Brancaleoni Castellani  
Substitutus.

"Praesentes Litterae Apostolicae in forma Brevis sub die 11  
Augusti 1863 exhibitae sunt in Secretaria S. C. Indulgentiarum  
die quinta Septembris ejusd. anni ad formam Decreti ipsius  
S. C. die 14 Aprilis 1856. In quorum Fidem etc. Datum Romae  
ex Eadem Secretaria die et anno ut supra.

"*Copia Originali conformis.*

"A. Archipr. Prinzivalli Substitutus".

### III.

## LETTER OF CARD. PATRIZI TO THE BISHOPS OF BELGIUM, ON SOME DOCTRINES TAUGHT AT LOUVAIN.

Illustrissime ac Reverendissime Domine uti Frater,

Quum non levis momenti sit pluribus ab hinc annis istis in regionibus  
agitata quaestio circa doctrinam a nonnullis Universitatis Lovaniensis  
doctoribus traditam de vi nativa humanae rationis, Sanctissimus D. N. qui  
in Apostolicae Sedis fastigio positus advigilare pro suo munere debet, ne  
qua minus recta doctrina diffundatur, quaestionem illam examinandam  
commisit duobus S. R. E. Cardinalium conciliis, tum S. Officii tum Indicis.  
Jam vero cum esset hujusmodi examen instituendum, prae oculis habitae  
sunt resolutiones quae sacrum idem concilium Indicis edidit, jam inde ab  
annis 1843 et 1844, posteaquam ad illius judicium delata sunt opera Gerardi  
Ubaghs in Lov. Univ. doctoris decurialis, in primisque tractatus logicae ac  
theodiceae. Etenim sacer ille consessus mature adhibita deliberatione  
duobus in conventibus habitis die 23 mens. Jun. An. 1843, ac die 8 Aug. an.  
1844, emendandas indicavit expositas tam in logica quam in theodicea

doctrinas de humanarum cognitionum origine sive ordinem metaphysicum spectent sive moralem, et illarum praesertim quae Dei existentiam respiciant. Id sane constat ex duobus notationum foliis, quae ex ejusdem sacri consessus sententia Gregorii XVI. SS. PP. auctoritate confirmata ad Emum. Card. archiep. Mechliniensem per Nuntiaturam Apost. transmissa fuerunt, monendi causa auctorem operis—*ut nova aliqua editione librum suum emendandum curet, atque interim in scholasticis suis lectionibus ab iis sentiis docendis abstinere velit.*—Quae duo notationum folia, modo res spectetur, simillima omnino sunt; si namque in folio posteriori aliqua facta est specie tenus immutatio, id ex eo repetendum est, quod auctor accepto priori folio libellum die 8 Dec. an. 1843, Emo. Archiepiscopo tradidit, quo libello doctrinae suae rationem explicare atque ab omni erroris suspicione purgare nitebatur. Quem sane libellum, licet idem Emorum. Patrum concilium accurate perpendisset, minime tamen a sententia discessit, atque adeo tractatus illos ac nominatim tractatum de Theodicea, qui typis impressi in omnium versabantur manibus, atque in Universitate aliisque scholis publice explicabantur, corrigendos judicavit. Fatendum quidem est, post annum 1844 nonnullos intervenisse actus, quibus praedicto Lov. doctori laus tribuebatur, perinde ac si in posterioribus sui operis editionibus sacri consessus voto ac sententiae paruisset, sed tamen uti firmum ratumque est bina illa notationum folia post sacri ejusdem concilii sententiam SS. P. auctoritate comprobata fuisse conscripta, ita pariter certum est, posteriores illos actus haudquaquam S. consessus, multoque minus SS. P. continere sententiam, quod quidem actus illos legentibus videre licet. Quae quum ita sint, necessarium investigare ac perpendere visum est, num memoratus Lov. doctor in editionibus logicae ac theodiceae, quas post diem 8 mens. Aug. an 1844 confecit, accurate sit exsequutus quod a S. Concilio libris notandis inculcatum ei fuit in memoratis notationum foliis per Card. archiepiscopum eidem auctori transmissis. Hujusmodi porro instituto examine rebusque diu multum ponderatis, memorati cardinales tum qui S. Inquisitioni tum qui libris notandis praepositi sunt, conventu habito die 21 sept. proxime praeteriti *judicarunt recentes eorumdem tractatum editiones minime fuisse emendatas juxta praedicti sacri consessus notationes, in iisque adhuc reperiri ea doctrinae principia quae uti praescriptum fuerat, corrigere oportebat.*

Quod quidem auctor ipse recenti in epistola ad Emum. Card. Ludovicum Altieri praef. S. C. libris notandis missa aperte fatetur. Scribit enim quatuor adhuc se publicasse theodiceae editiones, 1<sup>o</sup> nimirum an. 1844, quae primitus subjecta est S. Sedis iudicio; 2<sup>o</sup> an. 1845, typis impressam haud ita multo post notationes a S. Card. consensu propositas. Utraque vero editio, quemadmodum suis ipse verbis fatetur auctor, *similes prorsus sunt, idem capitum, paragraphorum et paginarum numerus, eadem locutiones; hoc solum differunt, quod secunda editio aliquot diversi generis notas et paucas phrases incidentes continet, quae simul paginas forte duodecim implere possint. Editiones vero, ut ipse prosequitur, tertia an. 1852, et quarta an. 1863, etiam in se similes sunt et a praecedentibus, si formam exteriorem, non doctrinam spectes, multum differunt.* Ad logicam porro quod spectat, cum illius tractatum iterum typis mandavit, post acceptas S. consensus notationes haec in praefatione significavit: *Quantuncumque scripta immutaverim, nunquam minime recedendum esse duxi a principiis, quae in primis editionibus assumpseram, quae tamen repudiare vel mutare me non pueret, si illa falsa vel minus recta esse quisquam ostendisset.*—Hinc pariter memorati Cardinales iudicarunt, exsequendum ab auctore esse quod minime adhuc praestitit, nimirum emendandam illi esse expositam doctrinam in cunctis iis locis seu capitibus quae S. consensus librorum notandorum iudex minus probavit, juxta notationes in supradictis duobus foliis comprehensas et *peculiariter in primo, utpote quod rem apertius ac distinctius explicat.* Ex quo tamen haudquaquam intelligendum est probari doctrinas reliquas, quae in recentioribus operum praedictorum editionibus continentur. Hanc porro Emorum. Patrum sententiam SS<sup>mus</sup>. D. N. Pius IX. auctoritate sua ratam habuit et confirmavit.

Quae cum ita se habeant, dum Emus. Car. Mechliniensis juxta demandatas ei partes memoratum doctorem Gerardum Casimirum Ubaghs admonebit officii sui eique vehementius inculcabit, ut doctrinam suam ad exhibitas S. consensus notationes omnino componat, erit vigilantiae tuique studii pastoralis una cum archiepiscopo aliisque suffraganeis episcopis omnem dare operam ut hujusmodi Emorum. Patrum sententia executioni nulla interjecta mora mandetur, *neque in ista Lovan. Universitate, quae ab Archiep. Mechl. et suffrag. antistitem auctoritate pendet, neque in seminariorum scholis aliisque lyceis illae amplius explicentur doctrinae,*

quae uti primum ad Apost. Sedis iudicium delatae fuerunt, visae sunt a  
scholis catholicis amandandae.

Haec significanda mihi erant Emorum. Patrum nomine Amplitudini Tuae  
cui fausta omnia ac felicia precor a Domino.

Amplitudinis Tuae  
Addictissimus uti Frater,  
C. CARD. PATRIZI.

Romae d. 11 Oct., 1864.

# NOTICES OF BOOKS.

## I.

*Juris Ecclesiastici Graecorum Historia et Monumenta, jussu  
Pii IX. Pont. Max., Curante I. B. Pitra, S. R. E., Card.  
Tom. I. a primo p. C. n. ad VI. sæculum. Romæ, Typis  
Collegii Urbani. MDCCCLXIV. 1 vol. fol. pagg. lvi.-686.*

The vast erudition which has made the name of Cardinal Mai for ever illustrious in the history of ecclesiastical literature, reappears in Cardinal Pitra, whom the wisdom of Pius IX. has lately called to be honoured by, and to do honour to, the Roman purple. The book before us is worthy of the reputation of the learned Benedictine, to whom we owe the *Spicilegium Solesmense*, and in whose person the best glories of the *Maurini Editores* have been revived. As the title imports, the volume is divided into two parts, one being devoted to the monuments, the other to the history, of the Greek ecclesiastical law. Of these monuments there are two distinct classes. The first contains all such as may be styled *juris apostolici*, viz., the canons of the apostles, their constitutions *de mystico ministerio*, their sentences, the acts of the council of Antioch, select portions of the apostolic constitutions, penitential canons, and the eight books of the constitutions. The second embraces the canons of councils held during the fourth and fifth centuries—the councils of Nice, of Ancyra, of Neo-Caesarea, of Gangre, of Constantinople, of Ephesus, and of Chalcedon. Next follow the canonical epistles of the Fathers—viz., two letters of St. Dionysius of Alexandria, one to Basilides, the second to Conon, which latter is here published for the first time. The canons of St. Peter of Alexandria, derived from two sermons on Pentecost and Easter; the canonical letter of St. Gregory of Neo-Caesarea, and his exposition of faith; three epistles of St. Athanasius; the epistles of St. Basil the Great to Amphilochius, to Gregory the Priest, to the chor episcopi, and to the bishops; the epistle of St. Gregory of Nyssa to Letorius; the canonical replies of Timothy of Alexandria; the edict of Theophilus of Alexandria, concerning the Theophaniæ; the commonitorium to Ammon; the declaration concerning the Cathari, and his replies to the bishops Agatho

and Menas, all by the same Theophilus; the three letters of St. Cyril of Alexandria, to Domnus, Maximus, and Gennadius; and finally, two catalogues of the inspired books, drawn up in verse by St. Gregory Nazianzen. These precious monuments are given both in their original language and in a Latin version. The text of the original is as perfect as a patient collation of MSS. and editions could make it, and the translation which accompanies it, is either the best already known, or a new one made by the eminent author. The notes are all that can be desired.

The history of Greek Ecclesiastical law is divided by the author into five periods. The first extends from the first to the sixth century; the second, from Justinian to Basil the Macedonian; the third, from the ninth to the twelfth century; the fourth, to the fall of the Empire; the fifth, to our own day. In the first epoch Ecclesiastical jurisprudence was in a most flourishing condition. In the following periods it lost its vigour, owing to the loss of the sacerdotal spirit among the bishops who sought favour at court, to the craft of the civil lawyers, to imperial tyranny, and at last to the Ottoman yoke. The method to be pursued in tracing the history of Greek Ecclesiastical law, according to our author, is to examine in each of these epochs, first, the canons in detail; next, the collections of canons; and finally, the interpretations and comments made upon them.

The volume is furthermore enriched by copious indexes of MSS. editions and libraries, and by a collection of the most striking passages of the Fathers and Councils which prove the primacy of the Apostolic See.

## II.

*La Tres Sainte Communion, etc.* [*Holy Communion.* By Mgr. de Segur; 43rd edition] Paris: Tolra and Haton, 68 Rue Bonaparte, 1864, pagg. 70.

This little work so unpretending in appearance comes before us honoured with an approbation which the most splendid volumes might be proud to deserve. The preachers of the Lenten sermons in Rome are accustomed to assemble at the commencement of that season in one of the halls of the Vatican to receive from the Holy Father, together with his blessing, their commission to preach the Word of God. On occasion of this ceremony

before the Lent of 1861, Pius IX. distributed with his own hand to each of the preachers a copy of the Italian translation of the work under notice, saying: "*This little book, which has come to us from France, has already done a great deal of good; it ought to be given to every child who makes his first communion. Every parish priest ought to have it, for it contains the true rules about communion, such as the Council of Trent understands them, and such as I wish to be put in practice*". Besides, in an Apostolic Brief, dated 29th September, 1860, the Holy Father approves of the doctrine which serves as the foundation of all the rules laid down by the author concerning frequent communion. The leading principle of the work is this: that Holy Communion is not a *recompense* for sanctity already acquired, but a *means* of preserving and of augmenting grace, and thereby of arriving at sanctity. Holy Communion, therefore, should be an ordinary and habitual act of the Christian life, and frequent communion should be the rule of the good Christian's conduct. There are, however, some important distinctions to be made. To go to communion every day, or almost every day, or three or four times a week, is frequent communion in its absolute sense, and frequent with respect to every class of person. To go to communion every Sunday and Holiday, a practice indirectly recommended *to all* by the Council of Trent, is not frequent communion for priests, members of religious orders, ecclesiastical students, or in general for such as aim at perfection; but it is frequent communion for children and for the mass of the faithful, who have but scanty leisure to devote to pious exercises. To communicate every month and on the great festivals, is not frequent communion at all, even for the poor and the labouring class. It is, no doubt, an excellent practice, and to be recommended to all, but it cannot be called frequent communion.

These principles once laid down and proved by the authority of Councils and Fathers, M. de Segur proceeds to give a plain and convincing reply to the difficulties urged by those who, having the dispositions required for frequent communion, are unwilling to permit it to themselves or to others. Of such difficulties he examines fifteen, which we here enumerate, in order that the eminently practical character of the book may be apparent to all: 1. To go frequently to communion, I ought to be better than I am; 2. I am not worthy to come so close to God; 3. Communion, when frequent, produces no effect; 4. I don't like to grow too familiar with holy things; 5. I am afraid

to go to communion without first going to confession, and I cannot go to confession so often; 6. It is bad to go to communion without preparation, and I have no time to prepare myself as I ought; 7. I do not feel any fervour when I communicate; I am full of distraction and without devotion; 8. I do not dare to communicate often; I always relapse into the same faults; 9. I am afraid of surprising and scandalizing my acquaintances by going so often to Communion; 10. My family will be displeased if I become a frequent communicant; 11. I know many pious persons who communicate but seldom; 12. I am most anxious to communicate frequently, but my confessor will not allow me; 13. Frequent communion is not the custom in this country; 14. It is quite enough to go to communion on the great festivals, or at most once a month; 15. Your doctrine on frequent communion goes to extremes, and cannot be put in practice. These objections are solved in a manner at once convincing and pleasing. To the charm of a most agreeable style, and a great knowledge of the world of to-day, Mgr. de Segur unites the still higher excellence of sound learning and the spirit of the most tender piety. These qualities are especially remarkable in the sections which, at the end of his work, he devotes to prove how beneficial frequent communion is to children, to young persons, to Ecclesiastical students, and to the sick and afflicted.

It will serve as a further recommendation of this little book to know that the Curé of Ars, who was an intimate friend of Mgr. de Segur, acted according to its maxims in the discharge of his ministry, and with what abundance of good to souls, France and the world well know.

### **III.**

*The Present State of Religious Controversy in America.* An Address delivered before the New York Theological Society. By the Rev. J. W. Cummings, D.D. New York: O'Shea, 1864.

The society at the inauguration of which this address was delivered, owes its origin to the zeal of some excellent young priests of the diocese of New York. They founded it that they might have in it at once a help and an incentive to keep up amid the labours of the mission that acquaintance with theology which they had cultivated in college. At each of the monthly meetings of the society two dissertations are read on some subject of Dogmatic Theology; and by the prudent advice of Dr. M'Closkey, the new Archbishop of New York, the discussion of a moral case has been added on each occasion. It speaks well for the sacerdotal spirit of the American clergy, that we can find flourishing among them this and similar associations, created by themselves and conducted with so much vigour and judgment. The New York Theological Society deserves from the priests of Ireland the highest praise these latter can bestow—the praise which consists in the imitation of what we admire. The range fixed for the society's labours naturally suggested to Dr. Cummings the subject of his inaugural discourse, and led him to address himself to the solution of this question: "What are the distinctive features of religious controversy as it occupies the public mind in our own age and country?" Among the distinctive features of American controversy he places the fact that the old political differences which ranged Protestants against Catholics in Europe have no real life or significance beyond the Atlantic. The Englishman's dread of Catholicism as a foreignism has no hold on the mind of an intelligent American. No doubt, there is even in American Protestants much bitterness against the Catholic Church, but it is merely the same spirit of opposition to lawful authority which ever has been and ever will continue to be in the world. But, with all his freedom of thought, there is in the case of the inquiring American a great difficulty to overcome.

"That difficulty is prejudice. The dark form of the old protest has passed away; but the injurious effects of its presence will long remain. What the gray dawn is to the night, what the chafing of the sea waves is after the storm, such is the cold

mistrust, the vague fear, the half-concealed repugnance to Catholics and Catholicity, which has succeeded to the bitter hatred and stern defiance of days gone by. Very commonly the Protestant who happens to meet with some point of Catholic controversy is either entirely ignorant of the subject—knows absolutely nothing about it—or is misinformed and malinformed; in fact, has his mind filled with all sorts of ideas touching the case in point except the right and true one....

"It follows from these remarks that what is most needed from us is sound, clear, and honest explanation of the doctrines taught by our Church. It is a waste of time to go on proving that Luther and Calvin were inconsistent, and contradicted themselves, or that they were ungodly in their conduct. No American is a Protestant out of respect for Luther or Calvin. He believes that Protestantism is liberty and enlightenment, and Catholicity is despotism and superstition. Show him that he can be a good Catholic and preserve his liberty too, and combat ignorance and superstition as much as he pleases, and he will listen respectfully to your voice".

Seeking thus the Kingdom of God, the Catholic priests of America will find that through their labours God has added unto their country all good things even in the temporal order. The Church in America is exhibiting every day more clearly her wondrous power as the civilizer of the nations. This is in no wise surprising to us who know her: but it is cheering to learn from such an authority as Dr. Cummings, that even those who are not her children are beginning to follow with reverent looks the traces she leaves in society by her influence on the hearts of men.

"Our honest Protestant friends, whether they are statesmen, scholars, publicists, military commanders, and in many cases, even ministers of the Gospel, are ready to concede, that unless the masses of the American people are led to act under the guidance of Catholic principles, there is little chance of saving this country from speedy and utter destruction.

"Let us, reverend brethren, do our work patiently and cheerfully to forward so grand a purpose as the conversion of this whole great country to true religion, leaving the result to God and to those who will follow us in the ministry when our seats shall be vacant in the holy sanctuary. The pioneer who, on the plains of our far western country, toils patiently in removing the charred and blackened tree-stumps scattered over the field where once rose the dark and tangled forest, does as necessary and honourable a work as his successor who passes scattering handfuls of seed along the soft, brown furrows, and as useful a work as the successor of both, who puts his sickle into the nodding grain and gathers in its golden sheaves at the happy harvest home".

#### IV.

*Ireland, her Present Condition, and what it might be.* By the Earl of Clancarty. Dublin: Herbert, 1864, pag. 39.

Even the nettle has its flower; and Lord Clancarty's pamphlet, bristling as it is with stinging points against the Catholic religion, is not without something to recommend it. The author says of the Catholic Church that, "while she was the depository of learning, and especially of the sacred writings, she neither furthered the interests of science, nor disseminated the knowledge of God's written word", and in the same breath he calls upon the state to countenance the Catholic University, "for which so ardent, and it must be admitted so legitimate, a desire is manifested by the Roman Catholic body". He raises, and satisfactorily disposes of, all the arguments that can be brought against the grant of a charter to the University. It is not the first time that lips opened to utter hard things against God's people have been made to become the vehicle of good wishes towards the same.

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|---------------------------|
| <b>Transcriber's Note</b> |
|---------------------------|

Minor typographic errors have been repaired.

Inconsistencies in capitalisation, accents and ligature usage are preserved as printed.

A table of contents has been added by the transcriber for the convenience of the reader.

On page [198](#), omitted word 'to' has been added following 'go'—"5. I am afraid to go to communion ..."

On page [199](#), omitted word 'the' has been added following 'except'-- "... touching the case in point except the right and true one...."

\*\*\* END OF THE PROJECT GUTENBERG EBOOK THE IRISH  
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